

Contract for the sale of land – 2005 edition

TERM

MEANING OF TERM

Vendor's agent

Raine & Horne Double Bay

Phone: (02) 9327 7971

385 New South Head Road, Double Bay, NSW 2028

Co-agent

Vendor

Edda Unewisse and Kurt Unewisse

35 Boonah Avenue, Eastgardens

Vendor's Solicitor

Key Property Lawyers

PO Box 1398, Bondi Junction 1355 NSW

Phone: 0403 529 937

Fax: (02) 9343 0043

Ref: NS:14/1299

Completion date

42nd day after the date of this contract (clause 15)

Land

35 Boonah Avenue, Eastgardens 2036

(Address, plan details
and title reference)

Registered Plan: Lot 1 Plan DP 383 654

Folio Identifier 1/383654

☒ VACANT POSSESSION ☐ subject to existing tenancies

Improvements

☒ HOUSE ☒ garage ☐ carport ☐ home unit ☒ carspace ☐ none

☐ other:

Attached copies

☒ Documents in the List of Documents as marked or as numbered:

☐ Other documents:

A real estate agent is permitted by legislation to fill up the items in this box in a sale of residential property.

Inclusions

☒ blinds

☒ curtains

☐ insect screens

☐ stove

☒ built-in wardrobes

☒ dishwasher

☒ light fittings

☐ pool equipment

☒ clothes line

☒ fixed floor coverings

☒ range hood

☐ TV antenna

☒ other: Wall air-conditioner, garden corner bench and table, groundwater pump, bird bath, built in shelves in living room, workbench and machinery in garage, kitchen corner bench, wardrobe in bedroom, pot plants, washing machine in internal laundry, shelves in spare bedroom

Exclusions

Purchaser

Purchaser's solicitor

Price \$

Deposit \$ (10% of the price, unless otherwise stated)

Balance \$

Contract date (if not stated, the date this contract was made)

Vendor

Witness

GST AMOUNT (optional)

The price includes

GST of:

Purchaser

☐ JOINT TENANTS

☐ tenants in common

☐ in unequal shares

Witness

Tax information (the parties promise this is correct as far as each party is aware)

Land tax is adjustable

☒ NO

☐ yes

GST: Taxable supply

☒ NO

☐ yes in full

☐ yes to an extent

Margin scheme will be used in making the taxable supply

☐ NO

☐ yes

This sale is not a taxable supply because (one or more of the following may apply) the sale is:

☒ not made in the course or furtherance of an enterprise that the vendor carries on (section 9-5(b))

☐ by a vendor who is neither registered nor required to be registered for GST (section 9-5(d))

☐ GST-free because the sale is the supply of a going concern under section 38-325

☐ GST-free because the sale is subdivided farm land or farm land supplied for farming under Subdivision 38-O

☐ input taxed because the sale is of eligible residential premises (sections 40-65, 40-75(2) and 195-1)

HOLDER OF STRATA OR COMMUNITY TITLE RECORDS – Name, address and telephone number

General ☒ 1 property certificate for the land ☒ 2 plan of the land ☐ 3 unregistered plan of the land ☐ 4 plan of land to be subdivided ☐ 5 document that is to be lodged with a relevant plan ☒ 6 section 149(2) certificate (Environmental Planning and Assessment Act 1979) ☐ 7 section 149(5) information included in that certificate ☒ 8 sewerage connections diagram ☒ 9 sewer mains diagram ☐ 10 document that created or may have created an easement, profit à prendre, restriction on use or positive covenant disclosed in this contract ☐ 11 section 88G certificate (positive covenant) ☐ 12 survey report ☐ 13 section 317A certificate (certificate of compliance) ☐ 14 building certificate given under <i>legislation</i> ☐ 15 insurance certificate (Home Building Act 1989) ☐ 16 brochure or note (Home Building Act 1989) ☐ 17 section 24 certificate (Swimming Pools Act 1982) ☐ 18 lease (with every relevant memorandum or variation) ☐ 19 other document relevant to tenancies ☐ 20 old system document ☐ 21 Crown tenure card ☐ 22 Crown purchase statement of account ☐ 23 Statutory declaration regarding vendor duty	Strata or community title (clause 23 of the contract) ☐ 24 property certificate for strata common property ☐ 25 plan creating strata common property ☐ 26 strata by-laws not set out in <i>legislation</i> ☐ 27 strata development contract or statement ☐ 28 strata management statement ☐ 29 leasehold strata - lease of lot and common property ☐ 30 property certificate for neighbourhood property ☐ 31 plan creating neighbourhood property ☐ 32 neighbourhood development contract ☐ 33 neighbourhood management statement ☐ 34 property certificate for precinct property ☐ 35 plan creating precinct property ☐ 36 precinct development contract ☐ 37 precinct management statement ☐ 38 property certificate for community property ☐ 39 plan creating community property ☐ 40 community development contract ☐ 41 community management statement ☐ 42 document disclosing a change of by-laws ☐ 43 document disclosing a change in a development or management contract or statement ☐ 44 document disclosing a change in boundaries ☐ 45 certificate under Management Act – section 109 (Strata Schemes) or section 26 (Community Land)
--	---

WARNINGS

1. Various Acts of Parliament and other matters can affect the rights of the parties to this contract. Some important matters are actions, claims, decisions, licences, notices, orders, proposals or rights of way involving

AGL Gas Networks Limited	Government Business & Government Procurement	Public Works Dept
Council	Heritage Office	Roads & Traffic Authority
County Council	Infrastructure Planning and Natural Resources	Rural Lands Protection Board
East Australian Pipeline Limited	Land & Housing Corporation	Sustainable Energy Development
Education & Training Dept	Mine Subsidence Board	Telecommunications authority
Electricity authority	Owner of adjoining land	Water, sewerage or drainage authority
Environment & Conservation Dept	Primary Industries Department	
Fair Trading	RailCorp	

If you think that any of these matters affects the property, tell your solicitor.
2. A lease may be affected by the Agricultural Tenancies Act 1990, the Residential Tenancies Act 1987 or the Retail Leases Act 1994.
3. If any purchase money is owing to the Crown, it may become payable when the transfer is registered.
4. If a consent to transfer is required under legislation, see clause 27 as to the obligations of the parties.
5. The vendor should continue the vendor's insurance until completion. If the vendor wants to give the purchaser possession before completion, the vendor should first ask the insurer to confirm this will not affect the insurance.
6. The purchaser will usually have to pay stamp duty on this contract. ~~The sale will also usually be a vendor duty transaction.~~ If duty is not paid on time, a party may incur penalties.
7. If the purchaser agrees to the release of deposit any rights in relation to the land (for example, the rights mentioned in clause 2.8) may be subject to the rights of other persons such as the vendor's mortgagee.
8. The purchaser should arrange insurance as appropriate.

DISPUTES

If you get into a dispute with the other party, the Law Society and Real Estate Institute encourage you to use informal procedures such as negotiation, independent expert appraisal or mediation (for example mediation under the Law Society Mediation Guidelines).

AUCTIONS

Regulations made under the Property Stock and Business Agents Act 2002 prescribe a number of conditions applying to sales by auction.

WARNING SWIMMING POOLS

An owner of property on which a swimming pool is situated must ensure that the pool complies with the requirements of the *Swimming Pools Act 1992*. Penalties apply. Before purchasing a property on which a swimming pool is situated, a purchaser is strongly advised to ensure that the swimming pool complies with the requirements of that Act.

WARNING SMOKE ALARMS

The owners of certain types of buildings and strata lots must have smoke alarms (or in certain cases heat alarms) installed in the building or lot in accordance with regulations under the *Environmental Planning and Assessment Act 1979*. It is an offence not to comply. It is also an offence to remove or interfere with a smoke alarm or heat alarm. Penalties apply.

IMPORTANT NOTICE TO VENDORS AND PURCHASERS

Before signing this contract you should ensure that you understand your rights and obligations, some of which are not written in this contract but are implied by law.

For example, as purchaser you should be satisfied that finance will be available at the time of completing the purchase (even if settlement might occur many months after signing this contract – in particular, if you are buying off the plan).

COOLING OFF PERIOD (PURCHASER'S RIGHTS)

1. This is the statement required by section 66X of the *Conveyancing Act 1919* and applies to a contract for the sale of residential property.
2. The purchaser may rescind the contract at any time before 5 p.m. on the fifth business day after the day on which the contract was made, **EXCEPT** in the circumstances listed in paragraph 3.
3. There is **NO COOLING OFF PERIOD**:
 - (a) if, at or before the time the contract is made, the purchaser gives to the vendor (or the vendor's solicitor or agent) a certificate that complies with section 66W of the Act; or
 - (b) if the property is sold by public auction; or
 - (c) if the contract is made on the same day as the property was offered for sale by public auction but passed in; or
 - (d) if the contract is made in consequence of the exercise of an option to purchase the property, other than an option that is void under section 66ZG of the Act.
4. A purchaser exercising the right to cool off by rescinding the contract will forfeit to the vendor 0.25% of the purchase price of the property. The vendor is entitled to recover the amount forfeited from any amount paid by the purchaser as a deposit under the contract and the purchaser is entitled to a refund of any balance.

WARNING SMOKE ALARMS

The owners of certain types of buildings and strata lots must have smoke alarms (or in certain cases heat alarms) installed in the building or lot in accordance with regulations under the Environmental Planning and Assessment Act 1979. It is an offence not to comply. It is also an offence to remove or interfere with a smoke alarm or heat alarm. Penalties apply.

IMPORTANT NOTICE TO VENDORS AND PURCHASERS

Before signing this contract you should ensure that you understand your rights and obligations, some of which are not written in this contract but are implied by law.

For example, as purchaser you should be satisfied that finance will be available at the time of completing the purchase (even if settlement might occur many months after signing this contract - in particular, if you are buying off the plan).

COOLING OFF PERIOD (PURCHASER'S RIGHTS)

1. This is the statement required by section 66X of the Conveyancing Act 1919 and applies to a contract for the sale of residential property.
2. The purchaser may rescind the contract at any time before 5 p.m. on the fifth business day after the day on which the contract was made, EXCEPT in the circumstances listed in paragraph 3.
3. There is NO COOLING OFF PERIOD:
 - (a) if, at or before the time the contract is made, the purchaser gives to the vendor (or the vendor's solicitor or agent) a certificate that complies with section 66W of the Act; or
 - (b) if the property is sold by public auction; or
 - (c) if the contract is made on the same day as the property was offered for sale by public auction but passed in; or
 - (d) if the contract is made in consequence of the exercise of an option to purchase the property, other than an option that is void under section 66ZG of the Act.
4. A purchaser exercising the right to cool off by rescinding the contract will forfeit to the vendor 0.25% of the purchase price of the property. The vendor is entitled to recover the amount forfeited from any amount paid by the purchaser as a deposit under the contract and the purchaser is entitled to a refund of any balance.

The vendor sells and the purchaser buys the *property* for the price under these provisions instead of Schedule 3 Conveyancing Act 1919, subject to any *legislation* that cannot be excluded.

1 Definitions (a term in *italics* is a defined term)

In this contract, these terms (in any form) mean -

<i>adjustment date</i>	the earlier of the giving of possession to the purchaser or completion;
<i>bank</i>	a bank as defined in the Banking Act 1959, the Reserve Bank or a State bank;
<i>business day</i>	any day except a bank or public holiday throughout NSW or a Saturday or Sunday;
<i>cheque</i>	a cheque that is not postdated or stale;
<i>depositholder</i>	vendor's agent (or if no vendor's agent is named in this contract, the vendor's <i>solicitor</i>);
<i>document of title</i>	document relevant to the title or the passing of title;
<i>GST Act</i>	A New Tax System (Goods and Services Tax) Act 1999;
<i>GST rate</i>	the rate mentioned in section 4 of A New Tax System (Goods and Services Tax Imposition - General) Act 1999 (10% as at 1 July 2000);
<i>legislation</i>	an Act or a by-law, ordinance, regulation or rule made under an Act;
<i>normally</i>	subject to any other provision of this contract;
<i>party</i>	each of the vendor and the purchaser;
<i>property</i>	the land, the improvements, all fixtures and the inclusions, but not the exclusions;
<i>requisition</i>	an objection, question or requisition (but the term does not include a claim);
<i>rescind</i>	rescind this contract from the beginning;
<i>serve</i>	serve in writing on the other <i>party</i> ;
<i>settlement cheque</i>	an unendorsed <i>cheque</i> made payable to the person to be paid and drawn on its own funds by - • a <i>bank</i>; or • a building society, credit union or other FCA institution as defined in Cheques Act 1986; that carries on business in Australia; or if authorised in writing by the vendor or the vendor's <i>solicitor</i> , some other <i>cheque</i> ;
<i>solicitor</i>	in relation to a <i>party</i> , the <i>party's</i> solicitor or licensed conveyancer named in this contract or in a notice <i>served</i> by the <i>party</i> ;
<i>terminate</i>	terminate this contract for breach;
<i>vendor duty</i>	vendor duty imposed under Chapter 4 of the Duties Act 1997;
<i>within</i>	in relation to a period, at any time before or during the period;
<i>work order</i>	a valid direction, notice or order that requires work to be done or money to be spent on or in relation to the <i>property</i> or any adjoining footpath or road.

2 Deposit and other payments before completion

- 2.1 The purchaser must pay the deposit to the *depositholder* as stakeholder.
- 2.2 *Normally*, the purchaser must pay the deposit on the making of this contract, and this time is essential.
- 2.3 If this contract requires the purchaser to pay any of the deposit by a later time, that time is also essential.
- 2.4 The purchaser can pay any of the deposit only by unconditionally giving cash (up to \$2,000) or a *cheque* to the *depositholder* or to the vendor, vendor's agent or vendor's *solicitor* for sending to the *depositholder*.
- 2.5 If any of the deposit is not paid on time or a *cheque* for any of the deposit is not honoured on presentation, the vendor can *terminate*. This right to *terminate* is lost as soon as the deposit is paid in full.
- 2.6 If the vendor accepts a bond or guarantee for the deposit, clauses 2.1 to 2.5 and 3 do not apply.
- 2.7 If the vendor accepts a bond or guarantee for part of the deposit, clauses 2.1 to 2.5 and 3 apply only to the balance.
- 2.8 If any of the deposit or of the balance of the price is paid before completion to the vendor or as the vendor directs, it is a charge on the land in favour of the purchaser until *termination* by the vendor or completion, subject to any existing right.
- 2.9 If each *party* tells the *depositholder* that the deposit is to be invested, the *depositholder* is to invest the deposit (at the risk of the *party* who becomes entitled to it) with a *bank*, credit union or permanent building society, in an interest-bearing account in NSW, payable at call, with interest to be reinvested, and pay the interest to the *parties* equally, after deduction of all proper government taxes and financial institution charges and other charges.

3 Payment of vendor duty out of the deposit

- 3.1 This clause applies only if this contract says the deposit can be used to pay vendor duty.
- 3.2 If the amount held by the *depositholder* (disregarding the value of any bond or guarantee) exceeds the amount of *vendor duty*, the parties direct the *depositholder* to release the amount of *vendor duty* on the following terms -
 - 3.2.1 the *depositholder* is to draw a *cheque* ("the vendor duty cheque") in favour of the Office of State Revenue and in a form acceptable to the Office of State Revenue for payment of *vendor duty*;
 - 3.2.2 the *depositholder* is not to draw that *cheque* earlier than 14 days before the completion date; and
 - 3.2.3 the receipt of a letter from the vendor's *solicitor* requesting the vendor duty cheque will be sufficient authority for the *depositholder* to draw and release that cheque.
- 3.3 The vendor's *solicitor* will use the vendor duty cheque for the sole purpose of payment of the *vendor duty* relating to this transaction.
- 3.4 If this contract is not completed in circumstances that there is, or may be, no liability for *vendor duty* -
 - 3.4.1 if the vendor duty cheque has been forwarded to the vendor's *solicitor* but has not been used to pay *vendor duty*, that cheque must be returned immediately to the *depositholder* for cancellation;
 - 3.4.2 if the vendor duty cheque has been used to pay *vendor duty* -
 - the amount of *vendor duty* is repayable upon demand;
 - the vendor must lodge an application for refund of *vendor duty*; and
 - the vendor irrevocably authorises the Office of State Revenue to pay to the *depositholder* the refund of *vendor duty*;
 - 3.4.3 each *party* must do whatever else is necessary to ensure that the party whose funds were used to pay *vendor duty* receives the refund; and
 - 3.4.4 rights under this clause continue even if the contract has been *rescinded* or *terminated*.

4 Transfer

- 4.1 *Normally*, the purchaser must *serve* the form of transfer at least 14 days before the completion date.
- 4.2 If any information needed for the form of transfer is not disclosed in this contract, the vendor must *serve* it.
- 4.3 If the purchaser *serves* a form of transfer and the transferee is not the purchaser, the purchaser must give the vendor a direction signed by the purchaser personally for this form of transfer.
- 4.4 The vendor can require the purchaser to include a form of covenant or easement in the transfer only if this contract contains the wording of the proposed covenant or easement, and a description of the land benefited.
- 4.5 If this sale is exempt from *vendor duty* -
 - 4.5.1 the vendor can (but does not have to) *serve* an application for exemption from *vendor duty* in the form satisfactory to the Office of State Revenue *within 7 days* after the contract date;
 - 4.5.2 if that application is attached to this contract or has been provided to the purchaser before the contract date, the application is *served* on the contract date; and
 - 4.5.3 if the vendor complies with clause 4.5.1 -
 - the purchaser must have the form of transfer marked by the Office of State Revenue in relation to *vendor duty* before *serving* the form of transfer; and
 - on completion the vendor must pay to the purchaser \$33.

5 Requisitions

- If the purchaser is or becomes entitled to make a *requisition*, the purchaser can make it only by *serving* it
- 5.1 if it arises out of this contract or it is a general question about the *property* or title - *within 21 days* after the contract date;
- 5.2 if it arises out of anything *served* by the vendor - *within 21 days* after the later of the contract date and that *service*; and
- 5.3 in any other case - *within* a reasonable time.

6 Error or misdescription

- 6.1 The purchaser can (but only before completion) claim compensation for an error or misdescription in this contract (as to the *property*, the title or anything else and whether substantial or not).
- 6.2 This clause applies even if the purchaser did not take notice of or rely on anything in this contract containing or giving rise to the error or misdescription.
- 6.3 However, this clause does not apply to the extent the purchaser knows the true position.

7 Claims by purchaser

- The purchaser can make a claim (including a claim under clause 6) before completion only by *serving* it with a statement of the amount claimed, and if the purchaser makes one or more claims before completion –
- 7.1 the vendor can *rescind* if in the case of claims that are not claims for delay
 - 7.1.1 the total amount claimed exceeds 5% of the price;
 - 7.1.2 the vendor *serves* notice of intention to *rescind*; and
 - 7.1.3 the purchaser does not *serve* notice waiving the claims *within* 14 days after that *service*; and
 - 7.2 if the vendor does not *rescind*, the *parties* must complete and if this contract is completed
 - 7.2.1 the lesser of the total amount claimed and 10% of the price must be paid out of the price to and held by the *depositholder* until the claims are finalised or lapse;
 - 7.2.2 the amount held is to be invested in accordance with clause 2.9;
 - 7.2.3 the claims must be finalised by an arbitrator appointed by the *parties* or, if an appointment is not made *within* 1 month of completion, by an arbitrator appointed by the President of the Law Society at the request of a *party* (in the latter case the *parties* are bound by the terms of the Conveyancing Arbitration Rules approved by the Law Society as at the date of the appointment);
 - 7.2.4 the purchaser is not entitled, in respect of the claims, to more than the total amount claimed and the costs of the purchaser;
 - 7.2.5 net interest on the amount held must be paid to the *parties* in the same proportion as the amount held; and
 - 7.2.6 if the *parties* do not appoint an arbitrator and neither *party* requests the President to appoint an arbitrator *within* 3 months after completion, the claims lapse.

8 Vendor's right to rescind

- The vendor can *rescind* if –
- 8.1 the vendor is, on reasonable grounds, unable or unwilling to comply with a *requisition*;
 - 8.2 the vendor *serves* a notice of intention to *rescind* that specifies the *requisition* and those grounds; and
 - 8.3 the purchaser does not *serve* a notice waiving the *requisition within* 14 days after that *service*.

9 Purchaser's default

- If the purchaser does not comply with this contract (or a notice under or relating to it) in an essential respect, the vendor can *terminate* by *serving* a notice. After the *termination* the vendor can –
- 9.1 keep or recover the deposit (to a maximum of 10% of the price);
 - 9.2 hold any other money paid by the purchaser under this contract as security for anything recoverable under this clause –
 - 9.2.1 for 12 months after the *termination*; or
 - 9.2.2 if the vendor commences proceedings under this clause *within* 12 months, until those proceedings are concluded; and
 - 9.3 sue the purchaser either –
 - 9.3.1 where the vendor has resold the *property* under a contract made *within* 12 months after the *termination*, to recover –
 - the deficiency on resale (with credit for any of the deposit kept or recovered and after allowance for any capital gains tax or goods and services tax payable on anything recovered under this clause); and
 - the reasonable costs and expenses arising out of the purchaser's non-compliance with this contract or the notice and of resale and any attempted resale; or
 - 9.3.2 to recover damages for breach of contract.

10 Restrictions on rights of purchaser

- 10.1 The purchaser cannot make a claim or *requisition* or *rescind* or *terminate* in respect of –
 - 10.1.1 the ownership or location of any fence as defined in the Dividing Fences Act 1991;
 - 10.1.2 a service for the *property* being a joint service or passing through another property, or any service for another property passing through the *property* ('service' includes air, communication, drainage, electricity, garbage, gas, oil, radio, sewerage, telephone, television or water service);
 - 10.1.3 a wall being or not being a party wall in any sense of that term or the *property* being affected by an easement for support or not having the benefit of an easement for support;
 - 10.1.4 any change in the *property* due to fair wear and tear before completion;
 - 10.1.5 a promise, representation or statement about this contract, the *property* or the title, not set out or referred to in this contract;
 - 10.1.6 a condition, exception, reservation or restriction in a Crown grant;
 - 10.1.7 the existence of any authority or licence to explore or prospect for gas, minerals or petroleum;
 - 10.1.8 any easement or restriction on use the substance of either of which is disclosed in this contract or any non-compliance with the easement or restriction on use; or
 - 10.1.9 anything the substance of which is disclosed in this contract (except a caveat, charge, mortgage or writ).
- 10.2 The purchaser cannot *rescind* or *terminate* only because of a defect in title to or quality of the inclusions.
- 10.3 *Normally*, the purchaser cannot make a claim or *requisition* or *rescind* or *terminate* or require the vendor to change the nature of the title disclosed in this contract (for example, to remove a caution evidencing qualified title, or to lodge a plan of survey as regards limited title).

11 Compliance with work orders

- 11.1 *Normally*, the vendor must by completion comply with a *work order* made on or before the contract date and if this contract is completed the purchaser must comply with any other *work order*.
- 11.2 If the purchaser complies with a *work order*, and this contract is *rescinded* or *terminated*, the vendor must pay the expense of compliance to the purchaser.

12 Certificates and inspections

- The vendor must do everything reasonable to enable the purchaser, subject to the rights of any tenant –
- 12.1 to have the *property* inspected to obtain any certificate or report reasonably required;
- 12.2 to apply (if necessary in the name of the vendor) for –
- 12.2.1 any certificate that can be given in respect of the *property* under *legislation*; or
- 12.2.2 a copy of any approval, certificate, consent, direction, notice or order in respect of the *property* given under *legislation*, even if given after the contract date; and
- 12.3 to make 1 inspection of the *property* in the 3 days before a time appointed for completion.

13 Goods and services tax (GST)

- 13.1 In this clause, enterprise, input tax credit, margin scheme, supply of a going concern, tax invoice and taxable supply have the same meanings as in the *GST Act*.
- 13.2 *Normally*, if a *party* must pay the price or any other amount to the other *party* under this contract. GST is not to be added to the price or amount.
- 13.3 If under this contract a *party* must make an adjustment, pay an expense of another party or pay an amount payable by or to a third party (for example, under clauses 14 or 20.7) –
- 13.3.1 the *party* must adjust or pay on completion any GST added to or included in the amount; but
- 13.3.2 if this contract says this sale is a taxable supply, and payment would entitle the *party* to an input tax credit, the adjustment or payment is to be worked out by deducting any input tax credit to which the party receiving the adjustment is or was entitled and adding the *GST rate*.
- 13.4 If this contract says this sale is the supply of a going concern –
- 13.4.1 the *parties* agree the supply of the *property* is a supply of a going concern;
- 13.4.2 the vendor must, between the contract date and completion, carry on the enterprise conducted on the land in a proper and business-like way;
- 13.4.3 if the purchaser is not registered by the completion date, the *parties* must complete and the purchaser must pay on completion, in addition to the price, an amount being the price multiplied by the *GST rate* ("the retention sum"). The retention sum is to be held by the *depositholder* and dealt with as follows:
- if *within* 3 months of completion the purchaser serves a letter from the Australian Taxation Office stating the purchaser is registered, the *depositholder* is to pay the retention sum to the purchaser; but
 - if the purchaser does not serve that letter *within* 3 months of completion, the *depositholder* is to pay the retention sum to the vendor; and
- 13.4.4 if the vendor, despite clause 13.4.1, serves a letter from the Australian Taxation Office stating the vendor has to pay GST on the supply, the purchaser must pay to the vendor on demand the amount of GST assessed.
- 13.5 *Normally*, the vendor promises the margin scheme will not apply to the supply of the *property*.
- 13.6 If this contract says the margin scheme is to apply in making the taxable supply, the parties agree that the margin scheme is to apply to the sale of the *property*.
- 13.7 If this contract says the sale is not a taxable supply –
- 13.7.1 the purchaser promises that the *property* will not be used and represents that the purchaser does not intend the *property* (or any part of the *property*) to be used in a way that could make the sale a taxable supply to any extent; and
- 13.7.2 the purchaser must pay the vendor on completion in addition to the price an amount calculated by multiplying the price by the *GST rate* if this sale is a taxable supply to any extent because of –
- a breach of clause 13.7.1; or
 - something else known to the purchaser but not the vendor.
- 13.8 If this contract says this sale is a taxable supply in full and does not say the margin scheme applies to the *property*, the vendor must pay the purchaser on completion an amount of one-eleventh of the price if –
- 13.8.1 this sale is not a taxable supply in full; or
- 13.8.2 the margin scheme applies to the *property* (or any part of the *property*).
- 13.9 If this contract says this sale is a taxable supply to an extent –
- 13.9.1 clause 13.7.1 does not apply to any part of the *property* which is identified as being a taxable supply; and
- 13.9.2 the payments mentioned in clauses 13.7 and 13.8 are to be recalculated by multiplying the relevant payment by the proportion of the price which represents the value of that part of the *property* to which the clause applies (the proportion to be expressed as a number between 0 and 1). Any evidence of value must be obtained at the expense of the vendor.
- 13.10 *Normally*, on completion the vendor must give the recipient of the supply a tax invoice for any taxable supply by the vendor by or under this contract.
- 13.11 The vendor does not have to give the purchaser a tax invoice if the margin scheme applies to a taxable supply.

14 Adjustments

- 14.1 *Normally*, the vendor is entitled to the rents and profits and will be liable for all rates, water, sewerage and drainage service and usage charges, land tax and all other periodic outgoings up to and including the *adjustment date* after which the purchaser will be entitled and liable.
- 14.2 The *parties* must make any necessary adjustment on completion.
- 14.3 If an amount that is adjustable under this contract has been reduced under *legislation*, the *parties* must on completion adjust the reduced amount.
- 14.4 The *parties* must adjust land tax for the year current at the *adjustment date* –
- 14.4.1 only if land tax has been paid or is payable for the year (whether by the vendor or by a predecessor in title) and this contract says that land tax is adjustable;
- 14.4.2 by adjusting the amount that would have been payable if at the start of the year –
- the person who owned the land owned no other land;
 - the land was not subject to a special trust or owned by a non-concessional company; and
 - if the land (or part of it) had no separate taxable value, by calculating its separate taxable value on a proportional area basis.
- 14.5 If any other amount that is adjustable under this contract relates partly to the land and partly to other land, the *parties* must adjust it on a proportional area basis.
- 14.6 *Normally*, the vendor can direct the purchaser to produce a *settlement* cheque on completion to pay an amount adjustable under this contract and if so
- 14.6.1 the amount is to be treated as if it were paid; and
- 14.6.2 the *cheque* must be forwarded to the payee immediately after completion (by the purchaser if the *cheque* relates only to the *property* or by the vendor in any other case).
- 14.7 If on completion the last bill for a water, sewerage or drainage usage charge is for a period ending before the *adjustment date*, the vendor is liable for an amount calculated by dividing the bill by the number of days in the period then multiplying by the number of unbilled days up to and including the *adjustment date*.
- 14.8 The vendor is liable for any amount recoverable for work started on or before the contract date on the *property* or any adjoining footpath or road.

15 Completion date

The *parties* must complete by the completion date and, if they do not, a *party* can serve a notice to complete if that *party* is otherwise entitled to do so.

16 Completion

• Vendor

- 16.1 On completion the vendor must give the purchaser any *document of title* that relates only to the *property*.
- 16.2 If on completion the vendor has possession or control of a *document of title* that relates also to other property, the vendor must produce it as and where necessary.
- 16.3 *Normally*, on completion the vendor must cause the legal title to the *property* (being an estate in fee simple) to pass to the purchaser free of any mortgage or other interest, subject to any necessary registration.
- 16.4 The legal title to the *property* does not pass before completion.
- 16.5 If the vendor gives the purchaser a document (other than the transfer) that needs to be lodged for registration, the vendor must pay the lodgment fee to the purchaser, plus another 20% of that fee.
- 16.6 If the purchaser serves a land tax certificate showing a charge on any of the land, on completion the vendor must give the purchaser a land tax certificate showing the charge is no longer effective against the land.

• Purchaser

- 16.7 On completion the purchaser must pay to the vendor, by cash (up to \$2,000) or *settlement cheque*, the price (less any deposit paid) and any other amount payable by the purchaser under this contract (less any amount payable by the vendor to the purchaser under this contract).
- 16.8 If the vendor requires more than 5 *settlement cheques*, the vendor must pay \$10 for each extra *cheque*.
- 16.9 If any of the deposit is not covered by a bond or guarantee, on completion the purchaser must give the vendor an order signed by the purchaser authorising the *depositholder* to account to the vendor for the deposit.
- 16.10 On completion the deposit belongs to the vendor.

• Place for completion

- 16.11 *Normally*, the parties must complete at the completion address, which is
- 16.11.1 if a special completion address is stated in this contract - that address; or
- 16.11.2 if none is stated, but a first mortgagee is disclosed in this contract and the mortgagee would usually discharge the mortgage at a particular place - that place; or
- 16.11.3 in any other case - the vendor's *solicitor's* address stated in this contract.
- 16.12 The vendor by reasonable notice can require completion at another place, if it is in NSW, but the vendor must pay the purchaser's additional expenses, including any agency or mortgagee fee.
- 16.13 If the purchaser requests completion at a place that is not the completion address, and the vendor agrees, the purchaser must pay the vendor's additional expenses, including any agency or mortgagee fee.

17 Possession

- 17.1 *Normally*, the vendor must give the purchaser vacant possession of the *property* on completion.
- 17.2 The vendor does not have to give vacant possession if –

- 17.2.1 this contract says that the sale is subject to existing tenancies; and
- 17.2.2 the contract discloses the provisions of the tenancy (for example, by attaching a copy of the lease and any relevant memorandum or variation).
- 17.3 *Normally*, the purchaser can claim compensation (before or after completion) or *rescind* if any of the land is affected by a protected tenancy (a tenancy affected by Part 2, 3, 4 or 5 Landlord and Tenant (Amendment) Act 1948).

18 Possession before completion

- 18.1 This clause applies only if the vendor gives the purchaser possession of the *property* before completion.
- 18.2 The purchaser must not before completion -
 - 18.2.1 let or part with possession of any of the *property*;
 - 18.2.2 make any change or structural alteration or addition to the *property* or
 - 18.2.3 contravene any agreement between the *parties* or any direction, document, *legislation*, notice or order affecting the *property*.
- 18.3 The purchaser must until completion -
 - 18.3.1 keep the *property* in good condition and repair having regard to its condition at the giving of possession; and
 - 18.3.2 allow the vendor or the vendor's authorised representative to enter and inspect it at all reasonable times.
- 18.4 The risk as to damage to the *property* passes to the purchaser immediately after the purchaser enters into possession.
- 18.5 If the purchaser does not comply with this clause, then without affecting any other right of the vendor -
 - 18.5.1 the vendor can before completion, without notice, remedy the non-compliance; and
 - 18.5.2 if the vendor pays the expense of doing this, the purchaser must pay it to the vendor with interest at the rate mentioned in Schedule J of the Supreme Court Rules 1970.
- 18.6 If this contract is *rescinded* or *terminated* the purchaser must immediately vacate the *property*.
- 18.7 If the *parties* or their *solicitors* on their behalf do not agree in writing to a fee or rent, none is payable.

19 Rescission of contract

- 19.1 If this contract expressly gives a *party* a right to *rescind*, the party can exercise the right -
 - 19.1.1 only by *serving* a notice before completion; and
 - 19.1.2 in spite of any making of a claim or *requisition*, any attempt to satisfy a claim or *requisition*, any arbitration, litigation, mediation or negotiation or any giving or taking of possession.
- 19.2 *Normally*, if a *party* exercises a right to *rescind* expressly given by this contract or any *legislation* -
 - 19.2.1 the deposit and any other money paid by the purchaser under this contract must be refunded;
 - 19.2.2 a *party* can claim for a reasonable adjustment if the purchaser has been in possession;
 - 19.2.3 a *party* can claim for damages, costs or expenses arising out of a breach of this contract; and
 - 19.2.4 a *party* will not otherwise be liable to pay the other *party* any damages, costs or expenses.

20 Miscellaneous

- 20.1 The *parties* acknowledge that anything stated in this contract to be attached was attached to this contract by the vendor before the purchaser signed it and is part of this contract.
- 20.2 Anything attached to this contract is part of this contract.
- 20.3 An area, bearing or dimension in this contract is only approximate.
- 20.4 If a *party* consists of 2 or more persons, this contract benefits and binds them separately and together.
- 20.5 A *party's solicitor* can receive any amount payable to the *party* under this contract or direct in writing that it is to be paid to another person.
- 20.6 A document under or relating to this contract is
 - 20.6.1 signed by a *party* if it is signed by the *party* or the *party's solicitor* (apart from a direction under clause 4.3);
 - 20.6.2 *served* if it is *served* by the *party* or the *party's solicitor*;
 - 20.6.3 *served* if it is *served* on the *party's solicitor*, even if the *party* has died or any of them has died;
 - 20.6.4 *served* if it is *served* in any manner provided in s170 of the Conveyancing Act 1919;
 - 20.6.5 *served* if it is sent by fax to the *party's solicitor*, unless it is not received;
 - 20.6.6 *served* on a person if it (or a copy of it) comes into the possession of the person; and
 - 20.6.7 *served* at the earliest time it is *served*, if it is *served* more than once.
- 20.7 An obligation to pay an expense of another party of doing something is an obligation to pay -
 - 20.7.1 if the *party* does the thing personally - the reasonable cost of getting someone else to do it; or
 - 20.7.2 if the *party* pays someone else to do the thing - the amount paid, to the extent it is reasonable.
- 20.8 Rights under clauses 11, 13, 14, and 17 continue after completion, whether or not other rights continue.
- 20.9 The vendor does not promise, represent or state that the purchaser has any cooling off rights.
- 20.10 The vendor does not promise, represent or state that any attached survey report is accurate or current.
- 20.11 A reference to any *legislation* includes a reference to any corresponding later *legislation*.
- 20.12 Each *party* must do whatever is necessary after completion to carry out the *party's* obligations under this contract.
- 20.13 Neither taking possession nor *serving* a transfer of itself implies acceptance of the *property* or the title.
- 20.14 The details and information provided in this contract (for example, on page 1) are, to the extent of each *party's* knowledge, true, and are part of this contract.
- 20.15 Where this contract provides for choices, a choice in BLOCK CAPITALS applies unless a different choice is marked.

21 Time limits in these provisions

- 21.1 If the time for something to be done or to happen is not stated in these provisions, it is a reasonable time.
- 21.2 If there are conflicting times for something to be done or to happen, the latest of those times applies.

- 21.3 The time for one thing to be done or to happen does not extend the time for another thing to be done or to happen.
- 21.4 If the time for something to be done or to happen is the 29th, 30th or 31st day of a month, and the day does not exist, the time is instead the last day of the month.
- 21.5 If the time for something to be done or to happen is a day that is not a *business day*, the time is extended to the next *business day*, except in the case of clause 2 (deposit).
- 21.6 *Normally*, the time by which something must be done is fixed but not essential.

22 Foreign Acquisitions and Takeovers Act 1975

- 22.1 The purchaser promises that the Commonwealth Treasurer cannot prohibit and has not prohibited the transfer under the Foreign Acquisitions and Takeovers Act 1975.
- 22.2 This promise is essential and a breach of it entitles the vendor to *terminate*.

23 Strata or community title

- 23.1 This clause applies only if the land (or part of it) is a lot in a strata, neighbourhood, precinct or community scheme (or on completion is to be a lot in a scheme of that kind).
- 23.2 In this contract -
'change', in relation to a scheme, means -
- a registered or registrable change from by-laws set out in this contract or set out in *legislation* and specified in this contract;
 - a change from a development or management contract or statement set out in this contract; or
 - a change in the boundaries of common property;
- 'common property' includes association property for the scheme or any higher scheme;
'contribution' includes an amount payable under a by-law;
'normal expenses', in relation to an owners corporation for a scheme, means normal operating expenses usually payable from the administrative fund of an owners corporation for a scheme of the same kind;
'owners corporation' means the owners corporation or the association for the scheme or any higher scheme;
'the property' includes any interest in common property for the scheme associated with the lot;
'special expenses', in relation to an owners corporation, means its actual, contingent or expected expenses, except to the extent they are normal expenses, due to fair wear and tear, disclosed in this contract or covered by moneys held in the sinking fund.
- 23.3 Clauses 11, 14.8 and 18.4 do not apply to an obligation of the owners corporation, or to property insurable by it.
- 23.4 Clauses 14.4.2 and 14.5 apply but on a unit entitlement basis instead of an area basis.
- 23.5 The *parties* must adjust under clause 14.1 -
- 23.5.1 a regular periodic contribution;
- 23.5.2 a contribution which is not a regular periodic contribution but is disclosed in this contract; and
- 23.5.3 on a unit entitlement basis, any amount paid by the vendor for a normal expense of the owners corporation to the extent the owners corporation has not paid the amount to the vendor.
- 23.6 If a contribution is not a regular periodic contribution and is not disclosed in this contract -
- 23.6.1 the vendor is liable for it if it was levied before the contract date (unless it relates to work not started by that date), even if it is payable by instalments;
- 23.6.2 the vendor is also liable for it to the extent it relates to work started by the owners corporation before the contract date; and
- 23.6.3 the purchaser is liable for all other contributions levied after the *contract date*.
- 23.7 The vendor must pay or allow to the purchaser on completion the amount of any unpaid contributions for which the vendor is liable under clause 23.6.
- 23.8 *Normally*, the purchaser cannot make a claim or *requisition* or *rescind* or *terminate* in respect of -
- 23.8.1 an existing or future actual, contingent or expected expense of the owners corporation;
- 23.8.2 a proportional unit entitlement of the lot or a relevant lot or former lot, apart from a claim under clause 6; or
- 23.8.3 a past or future change in the scheme or a higher scheme.
- 23.9 However, the purchaser can *rescind* if -
- 23.9.1 the special expenses of the owners corporation at the later of the contract date and the creation of the owners corporation when calculated on a unit entitlement basis (and, if more than one lot or a higher scheme is involved, added together), less any contribution paid by the vendor, are more than 1% of the price;
- 23.9.2 in the case of the lot or a relevant lot or former lot in a higher scheme -
- a proportional unit entitlement for the lot is not disclosed in this contract; or
 - a proportional unit entitlement for the lot is disclosed in this contract but the lot has a different proportional unit entitlement at the contract date or at any time before completion; or
- 23.9.3 a change before the contract date or before completion in the scheme or a higher scheme substantially disadvantages the purchaser and is not disclosed in this contract.
- 23.10 The purchaser must give the vendor 2 copies of a proper form of notice of the transfer of the lot addressed to the owners corporation and signed by the purchaser.
- 23.11 The vendor must complete and sign 1 copy of the notice and give it to the purchaser on completion.
- 23.12 Each *party* can sign and give the notice as agent for the other.
- 23.13 The vendor must *serve* a certificate under section 109 Strata Schemes Management Act 1996 or section 26 Community Land Management Act 1989 in relation to the lot, the scheme or any higher scheme at least 7 days before the completion date.

- 23.14 The purchaser does not have to complete earlier than 7 days after *service* of the certificate and clause 21.3 does not apply to this provision.
- 23.15 On completion the purchaser must pay the vendor the prescribed fee for the certificate.
- 23.16 The vendor authorises the purchaser to apply for the purchaser's own certificate.
- 23.17 The vendor authorises the purchaser to apply for and make an inspection of any record or other document in the custody or control of the owners corporation or relating to the scheme or any higher scheme.
- 23.18 If a general meeting of the owners corporation is convened before completion -
- 23.18.1 if the vendor receives notice of it, the vendor must immediately notify the purchaser of it; and
 - 23.18.2 the purchaser can require the vendor to appoint the purchaser (or the purchaser's nominee) to exercise any voting rights of the vendor in respect of the lot at the meeting.

24 Tenancies

- 24.1 If a tenant has not made a payment for a period preceding or current at the *adjustment date* -
- 24.1.1 for the purposes of clause 14.2, the amount is to be treated as if it were paid; and
 - 24.1.2 the purchaser assigns the debt to the vendor on completion and will if required give a further assignment at the vendor's expense.
- 24.2 If a tenant has paid in advance of the *adjustment date* any periodic payment in addition to rent, it must be adjusted as if it were rent for the period to which it relates.
- 24.3 If the *property* is to be subject to a tenancy on completion or is subject to a tenancy on completion -
- 24.3.1 the vendor authorises the purchaser to have any accounting records relating to the tenancy inspected and audited and to have any other document relating to the tenancy inspected;
 - 24.3.2 the vendor must *serve* any information about the tenancy reasonably requested by the purchaser before or after completion; and
 - 24.3.3 *normally*, the purchaser can claim compensation (before or after completion) if -
 - any of Parts 2 to 7 of the Retail Leases Act 1994 applies to the tenancy, unless this contract discloses that the tenancy commenced on or after 1 August 1994;
 - a disclosure statement required by the Act was not given when required;
 - such a statement contained information that was materially false or misleading;
 - a provision of the lease is not enforceable because of a non-disclosure in such a statement; or
 - the lease was entered into in contravention of the Act.
- 24.4 If the *property* is subject to a tenancy on completion -
- 24.4.1 the vendor must allow or transfer -
 - any remaining bond money or any other security against the tenant's default (to the extent the security is transferable);
 - any money in a fund established under the lease for a purpose and compensation for any money in the fund or interest earned by the fund that has been applied for any other purpose;
 - any money paid by the tenant for a purpose that has not been applied for that purpose and compensation for any of the money that has been applied for any other purpose; and
 - 24.4.2 if the security is not transferable, each *party* must do everything reasonable to cause a replacement security to issue for the benefit of the purchaser and the vendor must hold the original security on trust for the benefit of the purchaser until the replacement security issues;
 - 24.4.3 the vendor must give to the purchaser -
 - a proper notice of the transfer addressed to the tenant;
 - any certificate given under the Retail Leases Act 1994 in relation to the tenancy;
 - a copy of any disclosure statement given to the tenant under the Retail Leases Act 1994;
 - a copy of any document served on the tenant under the lease and written details of its service, if the document concerns the rights of the landlord or the tenant after completion; and
 - any document served by the tenant under the lease and written details of its service, if the document concerns the rights of the landlord or the tenant after completion;
 - 24.4.4 the vendor must comply with any obligation to the tenant under the lease, to the extent it is to be complied with by completion; and
 - 24.4.5 the purchaser must comply with any obligation to the tenant under the lease, to the extent that the obligation is disclosed in this contract and is to be complied with after completion.
- 24.5 Rights under this clause continue after completion, whether or not other rights continue.

25 Qualified title, limited title and old system title

- 25.1 This clause applies only if the land (or part of it) -
 25.1.1 is under qualified, limited or old system title; or
 25.1.2 on completion is to be under one of those titles.
- 25.2 The vendor must *serve* a proper abstract of title *within* 7 days after the contract date.
- 25.3 If an abstract of title or part of an abstract of title is attached to this contract or has been lent by the vendor to the purchaser before the contract date, the abstract or part is *served* on the contract date.
- 25.4 An abstract of title can be or include a list of documents, events and facts arranged (apart from a will or codicil) in date order, if the list in respect of each document -
 25.4.1 shows its date, general nature, names of parties and any registration number; and
 25.4.2 has attached a legible photocopy of it or of an official or registration copy of it.
- 25.5 An abstract of title -
 25.5.1 must start with a good root of title (if the good root of title must be at least 30 years old, this means 30 years old at the contract date);
 25.5.2 in the case of a leasehold interest, must include an abstract of the lease and any higher lease;
 25.5.3 *normally*, need not include a Crown grant; and
 25.5.4 need not include anything evidenced by the Register kept under the Real Property Act 1900.
- 25.6 In the case of land under old system title -
 25.6.1 in this contract 'transfer' means conveyance;
 25.6.2 the purchaser does not have to *serve* the form of transfer until after the vendor has *served* a proper abstract of title; and
 25.6.3 each vendor must give proper covenants for title as regards that vendor's interest.
- 25.7 In the case of land under limited title but not under qualified title -
 25.7.1 *normally*, the abstract of title need not include any document which does not show the location, area or dimensions of the land (for example, by including a metes and bounds description or a plan of the land);
 25.7.2 clause 25.7.1 does not apply to a document which is the good root of title; and
 25.7.3 the vendor does not have to provide an abstract if this contract contains a delimitation plan (whether in registrable form or not).
- 25.8 The vendor must give a proper covenant to produce where relevant.
- 25.9 The vendor does not have to produce or covenant to produce a document that is not in the possession of the vendor or a mortgagee.
- 25.10 If the vendor is unable to produce an original document in the chain of title, the purchaser will accept a photocopy from the Registrar General of the registration copy of that document.

26 Crown purchase money

- 26.1 This clause applies only if purchase money is payable to the Crown, whether or not due for payment.
- 26.2 The vendor is liable for the money, except to the extent this contract says the purchaser is liable for it.
- 26.3 To the extent the vendor is liable for it, the vendor is liable for any interest until completion.
- 26.4 To the extent the purchaser is liable for it, the *parties* must adjust any interest under clause 14.1.

27 Consent to transfer

- 27.1 This clause applies only if the land (or part of it) is restricted title land (land that cannot be transferred without consent under *legislation*).
- 27.2 The purchaser must properly complete and then *serve* the purchaser's part of an application for consent to transfer of the land (or part of it) *within* 7 days after the contract date.
- 27.3 The vendor must apply for consent *within* 7 days after *service* of the purchaser's part.
- 27.4 If consent is refused, either party can *rescind*.
- 27.5 If consent is given subject to one or more conditions that will substantially disadvantage a *party*, then that *party* can rescind *within* 7 days after receipt by or *service* upon the *party* of written notice of the conditions.
- 27.6 If consent is not given or refused -
 27.6.1 *within* 42 days after the purchaser *serves* the purchaser's part of the application, the purchaser can *rescind*; or
 27.6.2 *within* 30 days after the application is made, either *party* can *rescind*.
- 27.7 If the *legislation* is the Western Lands Act 1901 each period in clause 27.6 becomes 90 days.
- 27.8 If the land or part is described as a lot in an unregistered plan, each time in clause 27.6 becomes the later of the time and 35 days after creation of a separate folio for the lot.
- 27.9 The completion date becomes the later of the completion date and 14 days after *service* of the notice granting consent to transfer.

28 Unregistered plan

- 28.1 This clause applies only if some of the land is described as a lot in an unregistered plan.
- 28.2 The vendor must do everything reasonable to have the plan registered *within* 6 months after the contract date, with or without any minor alteration to the plan or any document to be lodged with the plan validly required or made under *legislation*.

28.3 if the plan is not registered *within* that time and in that manner -

28.3.1 the purchaser can *rescind*; and

28.3.2 the vendor can *rescind*, but only if the vendor has complied with clause 28.2.

28.4 Either *party* can serve notice of the registration of the plan and every relevant lot and plan number.

28.5 The completion date becomes the later of the completion date and 21 days after *service* of the notice.

28.6 Clauses 28.2 and 28.3 apply to a plan that is to be registered before the plan is registered.

29 Conditional contract

29.1 This clause applies only if a provision says this contract or completion is conditional on an event.

29.2 If the time for the event to happen is not stated, the time is 42 days after the contract date.

29.3 If this contract says the provision is for the benefit of a *party*, then it benefits only that *party*.

29.4 if anything is necessary to make the event happen, each *party* must do whatever is reasonably necessary to cause the event to happen.

29.5 A *party* can *rescind* under this clause only if the *party* has substantially complied with clause 29.4.

29.6 If the event involves an approval and the approval is given subject to a condition that will substantially disadvantage a *party* who has the benefit of the provision, the *party* can *rescind within 7 days* after either party serves notice of the condition.

29.7 If the *parties* can lawfully complete without the event happening -

29.7.1 if the event does not happen *within* the time for it to happen, a *party* who has the benefit of the provision can *rescind within 7 days* after the end of that time;

29.7.2 if the event involves an approval and an application for the approval is refused, a *party* who has the benefit of the provision can *rescind within 7 days* after either *party serves* notice of the refusal;

29.7.3 the completion date becomes the later of the completion date and 21 days after the earliest of -

- either *party serving* notice of the event happening;
- every *party* who has the benefit of the provision *serving* notice waiving the provision;
- the end of the time for the event to happen.

29.8 If the *parties* cannot lawfully complete without the event happening -

29.8.1 if the event does not happen *within* the time for it to happen, either *party* can *rescind*;

29.8.2 if the event involves an approval and an application for the approval is refused, either *party* can *rescind*;

29.8.3 the completion date becomes the later of the completion date and 21 days after either *party serves* notice of the event happening.

29.9 A *party* cannot *rescind* under clauses 29.7 or 29.8 after the event happens.

Special conditions

These are the special conditions to the contract for the sale of land

BETWEEN

Edda Unewisse and Kurt Unewisse

(Vendor)

And

(Purchaser)

30. Conditions of sale by auction

If the property is or is intended to be sold at auction:

Bidders record means the bidders record to be kept pursuant to clause 18 of the Property, Stock and Business Agents Regulation 2003 and section 68 of the Property, Stock and Business Agents Act 2002:

- I. The following conditions are prescribed as applicable to and in respect of the sale by auction of land or livestock:
 - (a) The principal's reserve price must be given in writing to the auctioneer before the auction commences;
 - (b) A bid for the vendor cannot be made unless the auctioneer has, before the commencement of the auction, announced clearly and precisely the number of bids that may be made by or on behalf of the vendor;
 - (c) The highest bidder is the purchaser, subject to any reserve price;
 - (d) In the event of a disputed bid, the auctioneer is the sole arbitrator and the auctioneer's decision is final;
 - (e) The auctioneer may refuse to accept any bid that, in the auctioneer's opinion, is not in the best interests of the vendor;
 - (f) A bidder is taken to be a principal unless, before bidding, the bidder has given to the auctioneer a copy of a written authority to bid for or on behalf of another person;
 - (g) A bid cannot be made or accepted after the fall of the hammer; and

- (h) As soon as practicable after the fall of the hammer the purchaser is to sign the agreement (if any) for sale.
- II. The following conditions, in addition to those prescribed by subclause 1, are prescribed as applicable to and in respect of the sale by auction of residential property or rural land:
 - (a) All bidders must be registered in the bidders record and display an identifying number when making a bid;
 - (b) Subject to subclause 2A, the auctioneer may make only one vendor bid at an auction for the sale of residential property or rural land and no other vendor bid may be made by the auctioneer or any other person; and
 - (c) Immediately before making a vendor bid the auctioneer must announce that the bid is made on behalf of the vendor or announces 'vendor bid'.
- IIA. The following conditions, in addition to those prescribed by subclauses 1 and 2 are prescribed as applicable to and in respect of the sale by auction of co-owned residential property or rural land or the sale of such land by a vendor as executor or administrator:
 - (a) More than one vendor bid may be made to purchase interest of co-owner;
 - (b) A bid by or on behalf of an executor or administrator may be made to purchase in that capacity;
 - (c) Before the commencement of the auction, the auctioneer must announce that bids to purchase the interest of another co-owner or to purchase as executor or administrator may be made by or on behalf of the vendor; and
 - (d) Before the commencement of the auction, the auctioneer must announce the bidder registration number of any co-owner, executor or administrator or any person registered to bid on behalf of any co-owner, executor or administrator.
- III. The following condition, in addition to those prescribed by subclause 1, is prescribed as applicable to and in respect of the sale by auction of livestock. The purchaser of livestock must pay the stock and station agent who conducted

the auction, or under whose immediate and direct supervision the auction was conducted, or the vendor the full amount of the purchase price:

- (a) If amount can reasonably be determined immediately after fall of hammer – before the close of the next business day following the auction; or
- (b) If that amount cannot reasonably be determined immediately after the fall of the hammer – before the close of the next business day following determination of that amount,

unless some other time for payment is specified in a written agreement between the purchaser and the agent or the purchaser and the vendor made before the fall of the hammer.

31. Amendment to Printed Conditions

- (a) Clause 16.5 is amended by deleting “plus another 20% of that fee”
- (b) Clause 7.1.1 is amended by replacing “5%” with “\$1”

32. Notice to complete

In the event of either party failing to complete this contract within the time specified herein, then the other shall be entitled at any time thereafter to serve a notice to complete, requiring the other to complete within 14 days from the date of service of the notice, and this time period is considered reasonable by both parties. For the purpose of this contract, such notice to complete shall be deemed both at law and in equity sufficient to make time of the essence of this contract.

33. Interest on Late Completion

It is agreed that if, because of the fault of the purchaser, completion of this contract shall not occur on the completion date, then the purchase shall pay on completion, by way of liquidated damages, a sum equal to the rate of 10%

per annum on the balance of the purchase price, calculated on a daily basis. The interest will be computed from the completion date up to and including the date of completion. The total sum shall form part of the purchase monies and be paid on completion as an essential term of the Contract.

34. Death or incapacity

Notwithstanding any rule of law or equity to the contrary, should either party, or if more than one any one of them, prior to completion die or become mentally ill, as defined in the Mental Health Act, or become bankrupt, or if a company go into liquidation, then either party may rescind this contract by notice in writing forwarded to the other party and thereupon this contract shall be at an end and the provisions of clause 19 hereof shall apply.

35. Purchaser acknowledgements

The purchaser acknowledges that they are purchasing the property:

- a. In its present condition and state of repair;
- b. Subject to all defects latent and patent;
- c. Subject to any infestations and dilapidation;
- d. Subject to all existing water, sewerage, drainage and plumbing services and connections in respect of the property; and
- e. Subject to any non-compliance, that is disclosed herein, with the Local Government Act or any Ordinance under that Act in respect of any building on the land.

The purchaser agrees not to seek to terminate rescind or make any objection requisition or claim for compensation arising out of any of the matters covered by this clause.

35. Agent

The purchaser warrants that they were not introduced to the vendor or the property by or through the medium of any real estate agent or any employee of any real estate agent or any person having any connection with a real estate agent who may be entitled to claim commission as a result of this sale other than the vendors agent, if any, referred to in this contract, and the purchaser agrees that they will at all times indemnify and keep indemnified the vendor from and against any claim whatsoever for commission, which may be made by any real estate agent or other person arising out of or in connection with the purchasers breach of this warranty, and it is hereby agreed and declared that this clause shall not merge in the transfer upon completion, or be extinguished by completion of this contract, and shall continue in full force, and effect, not withstanding completion.

36. Smoke alarms

The property has smoke alarms installed.

Section 66W certificate

I, _____ of _____,
, certify as follows:

1. I am a _____ currently admitted to practise in New South Wales;
2. I am giving this certificate in accordance with section 66W of the Conveyancing Act 1919 with reference to a contract for the sale of property at **35 Boonah Avenue, Eastgardens**, from **Edda Unewisse and Kurt Unewisse** to _____ in order that there is no cooling off period in relation to that contract;
3. I do not act for **Edda Unewisse and Kurt Unewisse** and am not employed in the legal practice of a solicitor acting for **Edda Unewisse and Kurt Unewisse** nor am I a member or employee of a firm of which a solicitor acting for **Edda Unewisse and Kurt Unewisse** is a member or employee; and
4. I have explained to _____ :
 - (a) The effect of the contract for the purchase of that property;
 - (b) The nature of this certificate; and
 - (c) The effect of giving this certificate to the vendor, i.e. that there is no cooling off period in relation to the contract.

Dated: _____

Information Provided Through
InfoTrack
Ph. 1800 738 524
Fax. 1800 738 533

Title Search

InfoTrack
An Approved LPI NSW
Information Broker

LAND AND PROPERTY INFORMATION NEW SOUTH WALES - TITLE SEARCH

FOLIO: 1/383654

SEARCH DATE	TIME	EDITION NO	DATE
5/1/2015	3:42 PM	-	-

VOL 6875 FOL 44 IS THE CURRENT CERTIFICATE OF TITLE

LAND

LOT 1 IN DEPOSITED PLAN 383654
LOCAL GOVERNMENT AREA BOTANY BAY
PARISH OF BOTANY COUNTY OF CUMBERLAND
TITLE DIAGRAM DP383654

FIRST SCHEDULE

KURT ALEX UNEWISSE
EDDA ELIZABETH UNEWISSE
AS JOINT TENANTS (T L853064)

SECOND SCHEDULE (1 NOTIFICATION)

1 LAND EXCLUDES MINERALS AND IS SUBJECT TO RESERVATIONS AND
CONDITIONS IN FAVOUR OF THE CROWN - SEE CROWN GRANT(S)

NOTATIONS

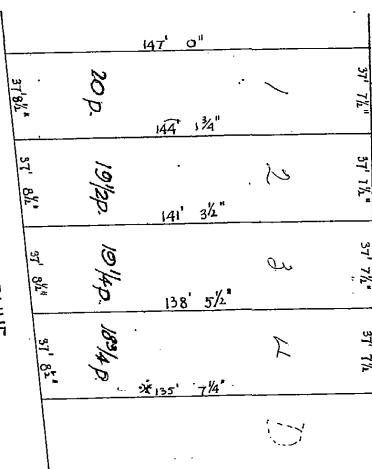
UNREGISTERED DEALINGS: NIL

*** END OF SEARCH ***

* Any entries preceded by an asterisk do not appear on the current edition of the Certificate of Title. Warning: the information appearing under notations has not been formally recorded in the Register.

InfoTrack an approved NSW Information Broker hereby certifies that the information contained in this document has been provided electronically by the Registrar General in accordance with Section 96B(2) of the Real Property Act 1900.

FP 383654 F-922878
Subdivision of Lots A,B & C Dep Plan 19461.
Munty + Pn Botany County Cumberland.
(MPS-RP)



PROPOSED SUBDIVISION OF
LOTS A, B, AND C,
BOONAH AVENUE.

THIS PLAN OF SUBDIVISION HAS BEEN APPROVED BY
THE BOTANMUNICIPAL COUNCIL AND IS COVERED BY
TOWN CLERKS CERTIFICATE NO. 8 OF 1953

Richard Dwyer
Town Clerk

IF ANY PART OF THIS CERTIFICATION HAS BEEN MADE IT
HAS NOT BEEN MADE BY THE DEPARTMENT AND SHOULD NOT
BE USED FOR ANY OTHER PURPOSE. THE DEPARTMENT IS
NOT RESPONSIBLE FOR ANY LOSS OR DAMAGE TO THE
CORNER WHICH IT PERTAINS TO MARK.

22381 L

CONVERSION TABLE ADDED IN
DEPARTMENT OF LANDS

DP 383654

FEET	INCHES	METRES
14	1 3/4	4.312
37	7 1/2	11.466
37	8 1/2	11.494
135	7 1/2	41.332
138	5 1/2	42.202
141	3 1/2	43.059
144	3 1/2	43.086
147	3 1/2	43.980
177	-	44.820
-	-	53.950
AC RD	P	SQ M
-	18 3/4	474.2
-	19 1/4	486.9
-	19 1/2	493.2
-	20	505.9

I, Bruce Richard Dwyer, Registrar General for New South Wales, certify
that this negative is a photograph made as a permanent record of a
document in my custody this 27th day of February, 1979

1



Administration Centre
141 Coward Street
Mascot 2020
Phone: (02) 9366 3666
Fax No.: (02) 9366 3777
DX 4108 Maroubra Junction

**PLANNING CERTIFICATE
UNDER SECTION 149(2)
ENVIRONMENTAL PLANNING AND
ASSESSMENT ACT, 1979**

Certificate No : 2014/5942
Date : 07/01/2015
Receipt No : 265956
Applicant Reference : 12/1299

Property:
35 Boonah Avenue
EASTGARDENS 2036
Description: Lot: 1 DP: 383654
Parcel No: 1970

Owner (as recorded by Council)
Mr K A & Mrs E E Unewisse
35 Boonah Avenue
EASTGARDENS NSW 2036

Applicant:
InfoTrack
DX 578 SYDNEY

MATTERS PRESCRIBED UNDER THE ENVIRONMENTAL PLANNING & ASSESSMENT ACT 1979 AND THE ENVIRONMENTAL PLANNING & ASSESSMENT REGULATION 2000 TO BE INCLUDED IN SECTION 149(2) PLANNING CERTIFICATES.

1. NAMES OF RELEVANT PLANNING INSTRUMENTS AND DCPS

- (1) The name of each environmental planning instrument that applies to the carrying out of development on the land.**

SEPP No. 1 - Development Standards
SEPP No. 6 - Number of Storeys in a Building
SEPP No. 19 - Bushland in Urban Areas
SEPP No. 21 - Caravan Parks
SEPP No. 22 - Shops and Commercial Premises
SEPP No. 30 - Intensive Agriculture
SEPP No. 32 - Urban Consolidation
SEPP No. 33 - Hazardous and Offensive Development
SEPP No. 50 - Canal Estate Development
SEPP No. 55 - Remediation of Land
SEPP No. 62 - Sustainable Aquaculture
SEPP No. 64 - Advertising and Signage
SEPP No. 65 - Design Quality of Residential flat Development
SEPP No. 70 - Affordable Housing - (Revised Schemes)
SEPP (Housing for Seniors or People with a Disability) 2004
SEPP (Building Sustainability index) "BASIX 2004"
SEPP (Major Development) 2005
SEPP (Infrastructure) 2007
SEPP (Mining, Petroleum Production and Extractive Industries) 2007
SEPP (Temporary Structures) 2007
SEPP (Repeal of Concurrence and Referral Provisions) 2008
SEPP (Exempt and Complying Development Codes) 2008
SEPP (Affordable Rental Housing) 2009
SEPP (State & Regional Development) 2011
SEPP (Three Ports) 2013

Botany Bay Local Environmental Plan 2013

- (2) The name of each proposed environmental planning instrument that will apply to the carrying out of development on the land and that is or has been the subject of community consultation or on public exhibition under the Act (unless the Director- General has notified the Council that the making of the proposed instrument has been deferred indefinitely or has not been approved).**

The following proposed environmental planning instruments apply to land within the City of Botany Bay.

Draft SEPP No.66 - Integration of Land Use and Transport

Draft SEPP (Application of Development Standard) 2004

SEPP No. 65 – Design Quality of Residential Flat Development (Draft Amendment No. 3) – Improving apartment design and affordability

*Planning Proposal No. 3/2013 – to rezone all educational establishments within the City of Botany Bay from R2 Low Density Residential or R3 Medium Density Residential to SP2 – Educational Establishments and delete the height of building and FSR controls from school sites. Please refer to **Attachment 3** attached to the rear of the Certificate for additional information.*

*Planning Proposal No. 1/2014 - to incorporate a new zone objective into the IN1 – General Industrial and the B5 – Business Development zones; provide additional permitted uses of 'airport-related land uses' and 'airport-related industry' on Qantas owned land and increase the floor space ratio of Qantas owned IN1 –General Industrial zoned land in Mascot. Please refer to **Attachment 3** attached to the rear of the Certificate for additional information.*

- (3) The name of each development control plan that applies to the carrying out of development on the land.**

The Botany Bay Development Control Plan 2013 applies to the carrying out of development on the land.

Please refer to the Attachment titled: Botany Bay Development Control Plan 2013 at the end of the Section 149(2) Planning Certificate for more information.

- (4) In this clause, proposed environmental planning instrument includes a planning proposal for a LEP or draft environmental planning instrument.**

2. ZONING AND LAND USE UNDER RELEVANT LEP

For each environmental planning instrument or proposed instrument referred to in clause 1 (other than a SEPP or proposed SEPP) that includes the land in any zone (however described):

- (a) The identity of the zone, whether by reference to a name (such as "Residential Zone" or "Heritage Area") or by reference to a number (such as "Zone No 2 (a)"),**
- (b) the purposes for which the instrument provides that development may be carried out within the zone without the need for development consent,**

- (c) the purpose for which the instrument provides that development may not be carried out within the zone except with development consent,
- (d) the purpose for which the instrument provides that development is prohibited within the zone,

Identity of the zone effected by the environmental planning instrument or proposed instrument on the above mentioned land.

- (a) **Zone R2 Low Density Residential**
- (b) **Development which may be carried out without development consent**

Home occupations

- (c) **Development which may be carried out only with development consent**

Attached dwellings; Bed and breakfast accommodation; Boarding houses; Building identification signs; Business identification signs; Child care centres; Community facilities; Dwelling houses; Environmental protection works; Flood mitigation works; Group homes; Health consulting rooms; Hospitals; Multi dwelling housing; Neighbourhood shops; Office premises; Places of public worship; Recreation areas; Residential flat buildings; Respite day care centres; Roads; Semi-detached dwellings.

- (d) **Development which is prohibited**

Any development not specified in item (b) or (c)

Note: Some of the uses listed in (c) are only permitted in certain circumstances. Please refer to the provisions of Botany Bay Local Environmental Plan 2013, especially Part 6, for additional information on permissibility of individual land uses specified in answer (c).

- (e) **Whether or not there are any development standards applying to the land that fix minimum land dimensions for the erection of a dwelling-house on the land and, if so, the land dimensions so fixed,**

NO

Note: There are no development standards applying to an existing allotment of land that fix minimum land dimensions for the erection of a dwelling house.

- (f) **Does the land include or comprise critical habitat?**

NO

- (g) Is the land in a conservation area?

NO

- (h) Is an item of environmental heritage situated on the land?

NO

2A. ZONING AND LANDUSE UNDER STATE ENVIRONMENTAL PLANNING POLICY (SYDNEY REGION GROWTH CENTRES) 2006

To the extent that the land is within any zone (however described) under:

- (a) Part 3 of the State Environmental Planning Policy (Sydney Region Growth Centres) 2006 (the 2006 SEPP), or
- (b) a Precinct Plan (within the meaning of the 2006 SEPP), or
- (c) a proposed Precinct Plan that is or has been the subject of community consultation or on public exhibition under the Act,

the particulars referred to in clause 2 (a)–(h) in relation to that land (with a reference to “the instrument” in any of those paragraphs being read as a reference to Part 3 of the 2006 SEPP, or the Precinct Plan or proposed Precinct Plan, as the case requires).

The land is not affected by the provisions of State Environmental Planning Policy (Sydney Region Growth Centres) 2006.

3. COMPLYING DEVELOPMENT

- (1) The extent to which the land is land on which complying development may be carried out under each of the codes for complying development because of the provisions of clauses 1.17A (1) (c) to (e), (2), (3) and (4), 1.18 (1) (c3) and 1.19 of State Environmental Planning Policy (Exempt and Complying Development Codes) 2008.
- (2) The extent to which complying development may not be carried out on that land because of the provisions of clauses 1.17A (1) (c) to (e), (2), (3) and (4), 1.18 (1) (c3) and 1.19 of that Policy and the reasons why it may not be carried out under those clauses.

- (3) **If the council does not have sufficient information to ascertain the extent to which complying development may or may not be carried out on the land, a statement that a restriction applies to the land, but it may not apply to all of the land, and that council does not have sufficient information to ascertain the extent to which complying development may or may not be carried out on the land.**

Disclaimer: This certificate only responds to the preliminary question whether complying development may be carried out on the land under each of the codes for complying development under the State Environmental Planning Policy (Exempt & Complying Development Codes) 2008 ("the Policy") or whether such development is excluded because of the provisions of clauses 1.17A (1) (c) to (e), (2), (3) and (4), 1.18(1) (c3) and 1.19 of the Policy. If this certificate states that complying development may be carried out on the land under a code, particular development must also comply with the other development specific requirements of the Policy including minimum site area, minimum frontage and zoning.

Failure of the proposed development to comply with any of those specific requirements may preclude it from being complying development under the Policy.

Note: Under Clause 1.17A (1) (a) to be complying development for the purposes of any environmental planning instrument, the development must not:

- (a) be development for which development consent cannot be granted except with the concurrence of a person other than:
- (i) the consent authority, or
 - (ii) the Director-General of the Department of Environment, Climate Change and Water as referred to in section 79B (3) of the Act.

(a) the General Housing Code



NO. Complying development under the General Housing Code may not be carried out on the land.

Please refer to the following reason why Complying Development may not be carried out on this land under the provisions of Clauses 1.17A (1) (c) to (e), (2), (3) and (4), 1.18(1) (c3) and 1.19 of the Codes SEPP.

REASON



The land is identified on a map specified in Schedule 5 of the Policy as land affected by a ground water exclusion zone.

(b) the Rural Housing Code

The Rural Housing Code is not applicable to the Botany Bay Local Government Area.

(c) the Housing Alterations Code



YES. None of the matters raised in Clauses 1.17A (1) (c) to (e), (2), (3) and (4), 1.18(1) (c3) and 1.19 of State Environmental Planning Policy (Exempt and Complying Development Codes) 2008 prevent complying development being carried out on the land under the Housing Alterations Code under the Codes SEPP.

(d) the General Development Code



YES. None of the matters raised in Clauses 1.17A (1) (c) to (e), (2), (3) and (4), 1.18(1) (c3) and 1.19 of State Environmental Planning Policy (Exempt and Complying Development Codes) 2008 prevent complying development being carried out on the land under the General Development Code under the Codes SEPP.

(e) the General Commercial and Industrial Alterations Code



YES. None of the matters raised in Clauses 1.17A (1) (c) to (e), (2), (3) and (4), 1.18(1) (c3) and 1.19 of State Environmental Planning Policy (Exempt and Complying Development Codes) 2008 prevent complying development being carried out on the land under the General Commercial and Industrial Code under the Codes SEPP.

(f) the Commercial and Industrial (New Buildings and Additions) Code



YES. None of the matters raised in Clauses 1.17A (1) (c) to (e), (2), (3) and (4), 1.18(1) (c3) and 1.19 of State Environmental Planning Policy (Exempt and Complying Development Codes) 2008 prevent complying development being carried out on the land under the General Commercial and Industrial Code under the Codes SEPP.

(g) the Subdivisions Code



YES. None of the matters raised in 1.17A (1) (c) to (e), (2), (3) and (4), 1.18(1) (c3) and 1.19 of State Environmental Planning Policy (Exempt and Complying Development Codes) 2008 prevent complying development being carried out on the land under the Subdivisions Code under the Codes SEPP.

(h) the Demolition Code



YES. None of the matters raised in Clauses 1.17A (1) (c) to (e), (2), (3) and (4), 1.18(1) (c3) and 1.19 of State Environmental Planning Policy (Exempt and Complying Development Codes) 2008 prevent complying development being carried out on the land under the Demolition Code under the Codes SEPP.

(i) the Fire Safety Code



YES. None of the matters raised in Clauses 1.17A (1) (c) to (e), (2), (3) and (4), 1.18(1) (c3) and 1.19 of State Environmental Planning Policy (Exempt and Complying Development Codes) 2008 prevent complying development being carried out on the land under the General Commercial and Industrial Code under the Codes SEPP.

4. COASTAL PROTECTION

Whether or not the land is affected by the operation of section 38 or 39 of the Coastal Protection Act 1979, but only to the extent that the council has been so notified by the Department of Services, Technology and Administration.

NO

4A. CERTAIN INFORMATION RELATING TO BEACHES AND COASTS

- (1) In relation to a coastal council—whether an order has been made under Part 4D of the *Coastal Protection Act 1979* in relation to temporary coastal protection works (within the meaning of that Act) on the land (or on public land adjacent to that land), except where the council is satisfied that such an order has been fully complied with.**
- (2) In relation to a coastal council:**
 - (a) whether the council has been notified under section 55X of the *Coastal Protection Act 1979* that temporary coastal protection works (within the meaning of that Act) have been placed on the land (or on public land adjacent to that land), and**
 - (b) if works have been so placed—whether the council is satisfied that the works have been removed and the land restored in accordance with that Act.**
- (3) Repealed**

Not applicable to the Botany Bay Local Government Area.

4B. ANNUAL CHARGES UNDER LOCAL GOVERNMENT ACT 1993 FOR COASTAL PROTECTION SERVICES THAT RELATE TO EXISTING COASTAL PROTECTION WORKS

In relation to a coastal council—whether the owner (or any previous owner) of the land has consented in writing to the land being subject to annual charges under section 496B of the *Local Government Act 1993* for coastal protection services that relate to existing coastal protection works (within the meaning of section 553B of that Act).

Note. “Existing coastal protection works” are works to reduce the impact of coastal hazards on land (such as seawalls, revetments, groynes and beach nourishment) that existed before the commencement of section 553B of the Local Government Act 1993.

Not applicable to the Botany Bay Local Government Area.

5. MINE SUBSIDENCE

Whether or not the land is proclaimed to be a mine subsidence district within the meaning of section 15 of the Mine Subsidence Compensation Act 1961.

NO

6. ROAD WIDENING AND ROAD REALIGNMENT

Whether or not the land is affected by any road widening or road realignment under:

(a) Division 2 of Part 3 of the Roads Act 1993, or

NO

(b) any environmental planning instrument, or

NO

(c) any resolution of the council.

NO

7. COUNCIL AND OTHER PUBLIC AUTHORITY POLICIES ON HAZARD RISK RESTRICTIONS

Whether or not the land is affected by a policy:

(a) adopted by the council, or

- (b) **adopted by any other public authority and notified to the council for the express purpose of its adoption by that authority being referred to in planning certificates issued by the council,**

that restricts the development of the land because of the likelihood of land slip, bushfire, tidal inundation, subsidence, acid sulphate soils or any other risk (other than flooding).

Clause 6.8 of the Botany Bay Local Environmental Plan 2013 - Airspace operations

Clause 6.9 of the Botany Bay Local Environmental Plan 2013 - Development in areas subject to aircraft noise

Botany Bay Development Control Plan 2013 - provisions of Part 3K - Contamination

Part 2 of Botany Bay Development Control Plan 2013 - any development application proposing a new structure within 10 metres either side (horizontally or vertically) of the "line of sight" (as detailed in Figures 2 & 3 of Part 2 of the DCP) requires referral to Sydney Ports Corporation for review and comment, to ensure that the proposed development does not impact on the Vessel Traffic Service system. Refer to Part 2 of the DCP for more information.

Part 3M of the Botany Bay Development Control Plan 2013 applies to land that drains into the Botany wetlands or has the potential to adversely affect the wetlands. Refer to Part 3m of the DCP for more information.

Note:

Where Council has no formal policy adopted by a resolution of Council to restrict the development due to risk, Council is prepared to volunteer some information relevant to the land. Please refer to the Section 149 (5) certificate.

7A. FLOOD RELATED DEVELOPMENT CONTROLS INFORMATION

- (1) **Whether or not development on the land or part of the land for the purposes of dwelling houses, dual occupancies, multi dwelling housing or residential flat buildings (not including development for the purposes of group homes or seniors housing) is subject to flood related development controls.**

NO

- (2) **Whether or not development on that land or part of the land for any other purpose is subject to flood related development controls.**

NO

- (3) **Words and expressions in this clause have the same meanings as in the instrument set out in the Schedule to the Standard Instrument (Local Environmental Plans) Order 2006.**

Note: *If the land has not been identified as being subject to flood related development controls, it does not mean that your property is not subject to flooding/local inundation. Council has not at this time adopted a formal policy by resolution whereby flood related development controls are imposed. Council is prepared to volunteer some further information relevant to the land. Please refer to the Section 149(5) Certificate.*

8. LAND RESERVED FOR ACQUISITION

Whether or not any environmental planning instrument or proposed environmental planning instrument referred to in clause 1 makes provision in relation to the acquisition of the land by a public authority, as referred to in section 27 of the Act.

NO

9. CONTRIBUTIONS PLANS

The name of each contributions plan applying to the land.

City of Botany Bay Section 94 Contributions Plan 2005-2010, Jan 06

9A. BIODIVERSITY CERTIFIED LAND

Is the land biodiversity certified land (within the meaning of Part 7AA of the Threatened Species Conservation Act 1995)?

NO

10. BIOBANKING AGREEMENTS

Has Council been notified by the Director-General of the Department of Environment, Climate Change and Water of the existence of a biobanking agreement under Part 7A of the Threatened Species Conservation Act 1995 that applies to the land to which the certificate relates?

NO

11. BUSH FIRE PRONE LAND

If any of the land is bush fire prone land (as defined in the Act)?

NO

12 PROPERTY VEGETATION PLANS

Has Council been notified by an approved person or body of the existence of a property vegetation plan under the Native Vegetation Act 2003 that applies to the land to which the certificate relates?

NO

13. ORDERS UNDER TREES (DISPUTES BETWEEN NEIGHBOURS) ACT 2006

Whether Council has been notified of an order that has been made under the Trees (Disputes Between Neighbours) Act 2006 to carry out work in relation to a tree on the land to which the certificate relates?

NO

14 DIRECTIONS UNDER PART 3A

Is there a direction by the Minister in force under section 75P (2) (c1) of the Act that a provision of an environmental planning instrument prohibiting or restricting the carrying out of a project or a stage of a project on the land under Part 4 of the Act does not have effect on the land to which the certificate relates?

NO

15. SITE COMPATIBILITY CERTIFICATES AND CONDITIONS FOR SENIORS HOUSING

- (a) Whether there is a current site compatibility certificate (of which Council is aware) issued under clause 25 of State Environmental Policy (Housing for Seniors or People with a Disability) in respect of proposed development on the land?**

NO

- (b) If a development application granted after 11 October 2007 in respect of the land, includes as a condition of consent any terms of a kind referred to in clause 18(2) of State Environmental Planning Policy (Housing for Seniors or People with a Disability)?**

NO

16. SITE COMPATIBILITY CERTIFICATES FOR INFRASTRUCTURE

Whether there is a valid site compatibility certificate (of which Council is aware), issued under clause 19 of State Environmental Planning Policy (Infrastructure) 2007 in respect of proposed development on the land?

NO

17. SITE COMPATIBILITY CERTIFICATES AND CONDITIONS FOR AFFORDABLE RENTAL HOUSING

- (a) Whether there is a current site compatibility certificate (affordable rental housing), of which Council is aware, in respect of proposed development on the land?**

NO

- (b) If a condition of consent to a development application in respect of the land includes the terms of a kind referred to in clause 17(1) or 37(1) of State Environmental Planning Policy (Affordable Rental Housing) 2009?**

NO

18. PAPER SUBDIVISION INFORMATION

- (1) The name of any development plan adopted by a relevant authority that applies to the land or that is proposed to be subject to a consent ballot.**
- (2) The date of any subdivision order that applies to the land.**
- (3) Words and expressions used in this clause have the same meaning as they have in Part 16C of this Regulation.**

Not applicable to the Botany Bay Local Government Area

19. SITE VERIFICATION CERTIFICATES

Whether there is a current site verification certificate, of which the council is aware, in respect of the land and, if there is a certificate, the statement is to include:

- (a) The matter certified by the certificate, and**

NO

Note: A site verification certificate sets out the Director-General's opinion as to whether the land concerned is or is not biophysical strategic agricultural land or critical industry cluster land—see Division 3 of Part 4AA of State Environmental Planning Policy (Mining, Petroleum Production and Extractive Industries) 2007.

(b) The date on which the certificate ceases to be current (if any), and

NO

(c) That a copy may be obtained from the head office of the Department of Planning and Infrastructure.

NO

MATTERS PRESCRIBED BY ACTS OTHER THAN THE ENVIRONMENTAL PLANNING & ASSESSMENT ACT 1979 TO BE INCLUDED IN SECTION 149(2) PLANNING CERTIFICATES.

1. MATTERS PRESCRIBED BY SECTION 59(2) OF THE CONTAMINATED LAND MANAGEMENT ACT 1997 AS ADDITIONAL MATTERS TO BE SPECIFIED IN A PLANNING CERTIFICATE.

Section 59(2) of the Contaminated Land Management Act 1997 prescribes the following additional matters that are to be specified in a planning certificate:

- (a) That the land to which the certificate relates is significantly contaminated land, if the land (or part of the land) is significantly contaminated land at the date when the certificate is issued,

NO

- (b) that the land to which the certificate relates is subject to a management order, if it is subject to such an order at the date when the certificate is issued,

NO

- (c) that the land to which the certificate relates is the subject of an approved voluntary management proposal, if it is the subject of an approved proposal at the date when the certificate is issued,

NO

- (d) that the land to which this certificate relates is subject to an ongoing maintenance order, if it is subject to such an order at the date when the certificate is issued,

NO

- (e) that the land to which this certificate relates is the subject of a site audit statement, if a copy of such statement has been provided at any time to the local authority issuing the certificate,

NO

Notes:

- (1) Section 53B requires site auditors to furnish local authorities with copies of site audit statements relating to site audits for the purposes of statutory requirements.
- (2) The information provided in (a) to (d) above is based on information provided by the Office of Environment and Heritage to the City of Botany Bay Council.
- (3) Any queries regarding the advice provided in (a) to (d) please contact the Office of Environment and Heritage on (02) 9995 5000.

Note No. 1

Section 26 of the *Nation Building and Jobs Plan (State Infrastructure Delivery) Act 2009* provides that a planning certificate must include advice about any exemption under section 23 or authorisation under section 24 of that Act if the council is provided with a copy of the exemption or authorisation by the Co-ordinator General under that Act.

Note No. 2

After the issue of this certificate Council may be prepared to provide up-to-date oral information to the applicant about matters disclosed in this certificate but if it does so Council accepts no responsibility whatsoever for the accuracy of the oral information given and no employee of the Council is authorised to bind Council by the giving of such oral information.

This information is provided pursuant to section 149 (2) of the Environmental Planning and Assessment (EPA) Act 1979 as prescribed by Schedule 4 of the EPA Regulations 2000 and is applicable as of the date of this certificate.

It is your responsibility to read all attachments to this Section 149 Planning Certificate.

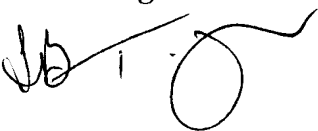
Additional matters pursuant to Section 149 (5)

Additional information provided pursuant to section 149 (5) of the EPA Act 1979, is available upon application and payment of the prescribed fee. Advice will be provided for the following additional matters not included under Section 149 (2) in accordance with Section 149 (5) and 149 (6) of the Act:

- (a) information that indicates whether or not any additional hazards exist for which no policy of council exists to restrict development;
- (b) whether or not the land is affected by a Tree Preservation Order;
- (c) whether or not there are building height restrictions as a result of the operations of the Sydney Airport; and
- (d) restrictions on the use of groundwater contained within the Botany Sands Aquifer;
- (e) sites potentially affected by the Declaration of Remediation Site in relation to Botany Groundwater Declaration.

Lara Kirchner
General Manager

Per :



ATTACHMENT NO. 1

BOTANY BAY LOCAL ENVIRONMENTAL PLAN 2013

The Botany Bay Local Environmental Plan 2013 was gazetted on 21 June 2013. The Botany Bay Local Environmental Plan 2013 replaces the Botany Local Environmental Plan 1995. The Botany Bay Local Environmental Plan 2013 is a statutory planning document that sets the direction for growth in the City of Botany Bay.

The Botany Bay Local Environmental Plan 2013 is consistent with the Standard Instrument, which was introduced by the State Government in March 2006.

The Botany Bay Local Environmental Plan 2013 applies to all land within the City of Botany Bay, except for the following:

1. Industrial lands covered by the State Environmental Planning Policy (Three Ports) 2013. This Policy largely relates to industrial land at Banksmeadow and provides the planning controls for development within the land affected by the SEPP – ie the Hale Street and Banksmeadow Industrial Precincts. A copy of State Environmental Planning Policy (Three Ports) 2013 is available on the NSW State Government's legislation website: www.legislation.nsw.gov.au; and
2. Lands identified as “Deferred matter” on the Land Application Map, being land to which the Botany Local Environmental Plan 1995 still applies, as follows:
 - o 26 Tupia Street, Botany;
 - o 2, 4, 10, 12, 16 & 18 Macintosh Street & 862, 864, 866 & 868 Botany Road, Mascot; and
 - o Lot 6 DP.776212, land at corner of Wentworth Avenue and Dransfield Avenue Mascot.

The BBLEP 2013 comprises of two parts:

- Written instrument; and
- Maps

The written instrument and maps need to be viewed together to understand the provisions for your property. Detailed planning controls supporting the BBLEP 2013 are contained within the Botany Bay Development Control Plan 2013. Further information is available at (<http://www.botanybay.nsw.gov.au>).

ATTACHMENT NO. 2
BOTANY BAY DEVELOPMENT CONTROL PLAN 2013

The Botany Bay Development Control Plan 2013 was adopted by Council on 11 December 2013 and came into effect on 17 December 2013. Council at its meeting held 9 December 2014 resolved to adopt Amendment No. 1 to the Botany Bay Development Control Plan 2013. This amendment came into effect on 16 December 2014

The DCP has been prepared as Council considers it necessary or desirable to provide the guidance referred to in section 74BA(1) and for other necessary or desirable purposes as contained within section 74C of the Environmental Planning and Assessment Act. The DCP will:

- (i) Guide future development within the Botany Bay Local Government Area (LGA);
- (ii) Support the controls found within the Botany Bay Local Environmental Plan 2013; and
- (iii) Protect and enhance the public domain

The Comprehensive Botany Bay DCP 2013 replaces all the DCPs and Policies that apply to land that the BBLEP 2013 applies to, except for the following sites:

- 26 Tupia Street, Botany;
- 2, 4, 10, 12, 16 and 18 Macintosh Street and 862, 864, 866 and 868 Botany Road, Mascot; and
- Land under State Environmental Planning Policy (Three Ports) 2013.

For more information please access Council's website – www.botanybay.nsw.gov.au

ATTACHMENT NO. 3
PLANNING PROPOSALS ON PUBLIC EXHIBITION

Community Consultation under Sections 56(2)(c) and 57 of the Environmental Planning & Assessment Act 1979 for Planning Proposal No. 3/2013 – Zoning of School Sites

On 11 December 2013, Council at its Meeting resolved to prepare a Planning Proposal in accordance with the *Environmental Planning & Assessment Act 1979* and *Environmental Planning & Assessment Regulation 2000* to amend the *Botany Bay Local Environmental Plan 2013*.

Objective

The Planning Proposal seeks to rezone all educational establishments from R2 – Low Density Residential or R3 – Medium Density Residential to SP2 – Education Establishments and delete the height of buildings and floor space ratio controls from the school sites identified as follows:

- Banksmeadow Public School
- Botany Public School
- Daceyville Public School
- Eastlakes Public School
- JJ Cahill Memorial High School
- Mascot Public School
- Matraville Public School
- Pagewood Public School
- St Bernard's Catholic Primary School
- St Michael's Catholic Primary School
- St Therese's Catholic Primary School

Intended Outcomes

The intended outcomes of the Planning Proposal are to:

- Retain and preserve existing community education assets (primary and secondary) within the Botany Bay LGA;
- Ensure sufficient educational establishments are provided and available for the existing and future residents;
- Create certainty for the local community in relation to the retention of community assets; and
- Enable greater input from the community into the future uses of these sites.

Council resolved on 5 November 2014 to place the Planning Proposal on community consultation.

The Planning Proposal will be on community consultation from Wednesday 26 November 2014 to Friday 19 December 2014 at Council's Administration Centre, Ground Floor, 141 Coward Street Mascot, from 8.30am to 4.30pm Monday to Friday. For the purpose of informing the public generally, the Council will also have exhibition materials on display on Council's website (<http://www.botanybay.nsw.gov.au>), however, the exhibition material on the website is not the full statutory exhibition.

Please note that the Minister has not delegated the functions under Section 59 (making of the LEP)

of the Environmental Planning & Assessment Act 1979 to Council.

Making a submission

Any person can make a submission/s in writing in regards to the Planning Proposal. Submissions must be lodged with Council **no later than 4.30pm on Friday 19 December 2014** and should be addressed to the General Manager, City of Botany Bay and posted to PO Box 331, Mascot, 1460; or Faxed to 9366 3777 or emailed to: council@botanybay.nsw.gov.au

Community Consultation under Sections 56(2)(c) and 57 of the Environmental Planning & Assessment Act 1979 for Planning Proposal No. 1/2014 – Qantas and land zoned IN1 and B5

On 9 December 2013, a Planning Proposal was submitted by Qantas Airways Limited in accordance with the *Environmental Planning & Assessment Act 1979* and *Environmental Planning & Assessment Regulation 2000* to amend the *Botany Bay Local Environmental Plan 2013*.

Objective

The Planning Proposal seeks to:

- 1) Incorporate the following objective in the IN1 – General Industrial and B5 – Business Development zones of the *Botany Bay Local Environmental Plan 2013*:

To support the role of Sydney Airport and Environs as a specialised centre by providing for an international aviation gateway and airport-related land uses and industries on land located in close proximity to Sydney Airport which does not compromise the viability of adjoining industrial uses.

- 2) Introduce additional permitted uses, including ‘airport-related land uses’ and ‘airport-related industry’ to land owned by Qantas within Schedule 1 (Additional permitted uses) of the *Botany Bay Local Environmental Plan 2013*.
- 3) Amend the *Botany Bay Local Environmental Plan 2013* to provide for a maximum floor space ratio of 1.5:1 on that part of the Qantas Land zoned IN1 for ‘airport-related land uses’ or ‘airport-related industries’.

Intended Outcomes

The intended outcomes of the Planning Proposal are to:

- Explicitly acknowledge the strategic importance of the Qantas Land in supporting the role of Sydney Airport and environs;
- Allow greater flexibility in the use of the Qantas Land reflecting its strategic importance adjacent to Sydney Airport;
- Enable a range of airport-related uses on the Qantas Land that will support Sydney Airport; and

- Increase the amount of floor space permitted on the Qantas Land zoned IN1 – General Industrial for ‘*airport-related land uses*’ or ‘*airport-related industries*’.

Council resolved on 5 November 2014 to place the Planning Proposal on community consultation.

The Planning Proposal will be on community consultation from 10 December 2014 to 30 January 2015 at Council’s Administration Centre, Ground Floor, 141 Coward Street Mascot, from 8.30am to 4.30pm Monday to Friday. For the purpose of informing the public generally, the Council will also have exhibition materials on display on Council’s website (<http://www.botanybay.nsw.gov.au>), however, the exhibition material on the website is not the full statutory exhibition.

Making a submission

Any person can make a submission/s in writing in regards to the Planning Proposal. Submissions must be lodged with Council **no later than 4.30pm on 30 January 2015** and should be addressed to the General Manager, City of Botany Bay and posted to PO Box 331, Mascot, 1460; or Faxed to 9366 3777 or emailed to: council@botanybay.nsw.gov.au

Note: The City of Botany Bay is authorized to exercise the functions of the Minister for Planning and Environment under Section 56 of the *Environmental Planning & Assessment Act 1979* in the making of the LEP.



**PLANNING CERTIFICATE
UNDER SECTION 149 (5)
ENVIRONMENTAL PLANNING AND
ASSESSMENT ACT, 1979**

Certificate No : 5942
Date : 07/01/2015
Receipt No : 265956
Applicant Reference : 12/1299
Application No : 9992

Applicant:
InfoTrack
DX 578 SYDNEY

Owner (as recorded by Council)
Mr K A & Mrs E E Unewisse
35 Boonah Avenue
EASTGARDENS NSW 2036

Property: 35 Boonah Avenue EASTGARDENS 2036
Description: Lot: 1 DP: 383654
Parcel No: 1970

WHEN INFORMATION PROVIDED TO SECTION 149(5) IS REQUESTED THE COUNCIL IS UNDER NO OBLIGATION TO FURNISH ANY OF THE INFORMATION SUPPLIED HEREIN PURSUANT TO THAT SECTION. COUNCIL DRAWS YOUR ATTENTION TO SECTION 149(6), WHICH STATES THAT A COUNCIL SHALL NOT INCUR LIABILITY IN RESPECT OF ANY ADVICE PROVIDED IN GOOD FAITH PURSUANT TO SUB SECTION (5). THE ABSENCE OF ANY REFERENCE TO ANY OTHER MATTER AFFECTING THE LAND SHALL NOT IMPLY THAT THE LAND IS NOT AFFECTED BY ANY MATTER NOT REFERRED TO IN THIS CERTIFICATE.

- (a) **Whether or not Council is aware of possible risk affection to the land for which no policy of Council exists to restrict development.**

NO

- (b) **Is the land affected by a Tree Preservation Order?**

YES

- (c) **Is the Council aware of possible height restrictions as a result of the operations of the Sydney Airport?**

YES

The applicant should contact Sydney Airport Corporation Limited for further information.

- (d) **Is the use of groundwater contained within the Botany Sands Aquifer restricted?**

The NSW Office of Water has published a map showing areas where the use of groundwater is restricted to various degrees including total prohibition of use in a certain area.

The applicant should contact the Office of Water for further information on (02) 82817777 or <http://www.water.nsw.gov.au/Water-management/Water-quality/Groundwater/Botany-Sand-Beds-aquifer/Botany-Sands-Aquifer/default.aspx>

Lara Kirchner
General Manager

Per :

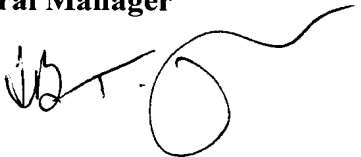


DIAGRAM OF SANITARY DRAINAGE

Municipality of *BOTANY*

SEWER AVAILABLE

Diagram No. *197371*

SYMBOLS AND ABBREVIATIONS							
□	Boundary Trap	■ R.V.	Reflux Valve	I.P.	Induct Pipe	Bsn.	Basin
■	Pit	○	Cleaning Eye	M.F.	Mica Flap	Shr.	Shower
■ G.I.	Grease Interceptor	○ Vert.	Vertical Pipe	T.	Tubs	W.I.P.	Wrought Iron Pipe
■	Gully	○ V.P.	Vent. Pipe	K.S.	Kitchen Sink	C.I.P.	Cast Iron Pipe
■ P.T.	P. Trap	○ S.V.P.	Soil Vent. Pipe	W.C.	Water Closet	F.W.	Floor Waste
■ R.S.	Reflux Sink	D.C.C.	Down Cast Cowl	B.W.	Bath Waste		

Existing drainage shown by black lines. Scale: 40 Feet to an Inch New drainage shown by full blue lines.

This diagram is the property of the Proprietor and is to be returned to him on completion of the work.

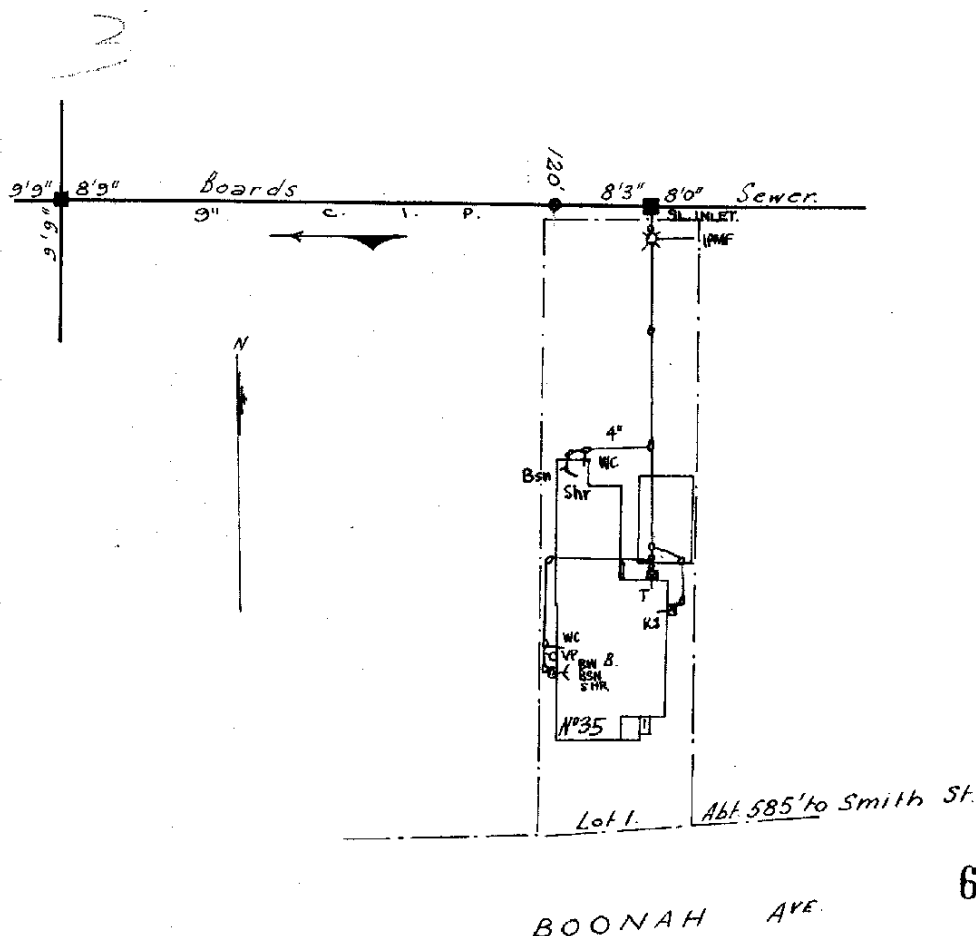
Certificates for drainage and sanitary plumbing may be obtained on application at the office of the Board by the Drainer or Plumber concerned.

The Board accepts no responsibility for the suitability of the diagram in relation to the eventual position of the Board's sewer. When the sewer becomes available it will be necessary to apply for a revised diagram.

This work must be carried out in accordance with the Board's By-laws and Regulations.

(4" dia. pipes may be used in lieu of 6" dia. pipes as shown on this diagram if the property owner so desires, provided that the relative levels of the sewer and house fixtures will permit of the pipes being laid with regulation grades and cover. For further information consult Board's Inspector.)

This work will be tested from

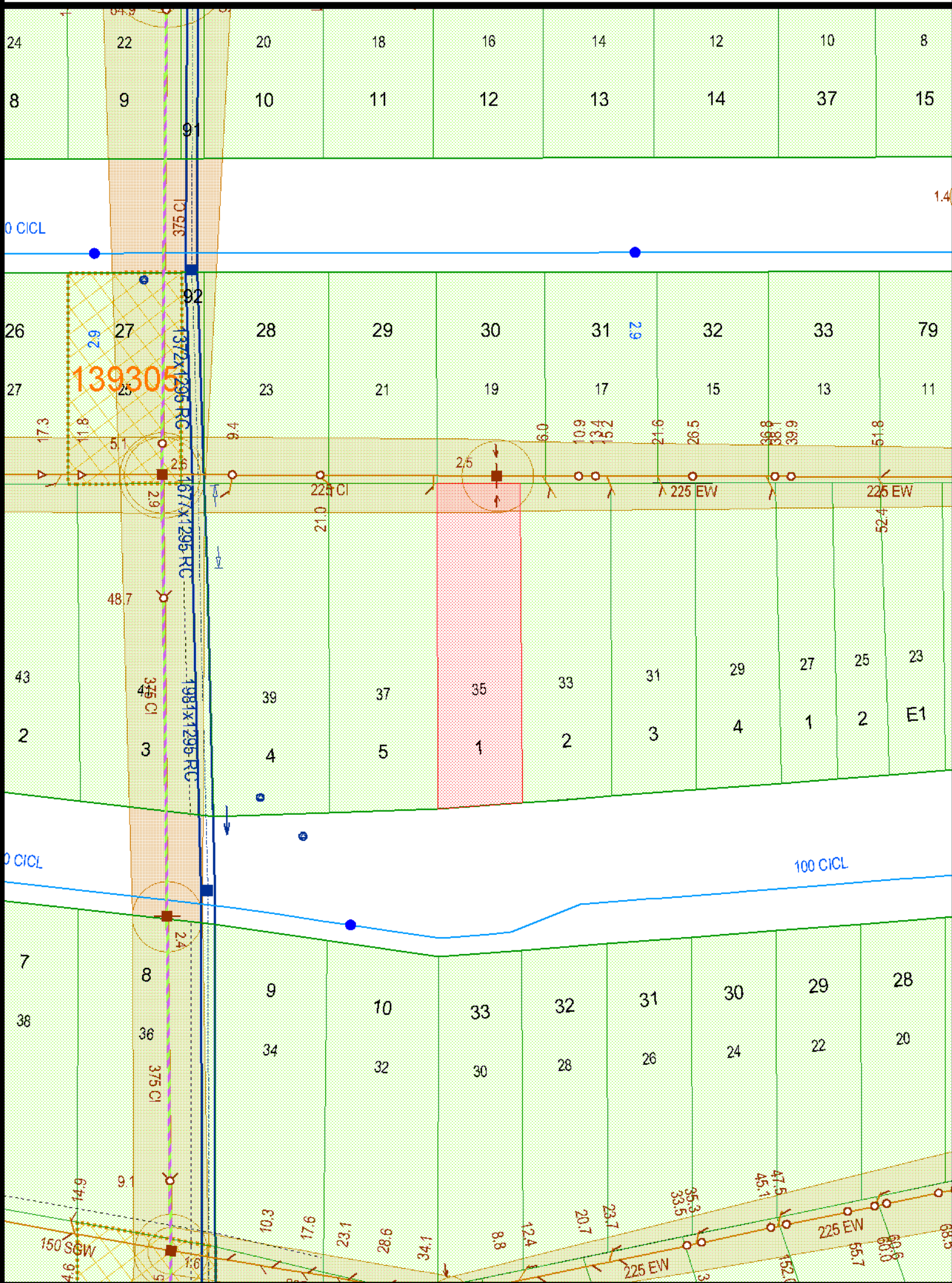


SHEET No 1294.

For Engineer-in-Chief

OFFICE USE ONLY						
W.C.	Designed by	Date	Inspector	First Visit	Passed	Date
B.W.		1/1				
Shr.	Inspector					
Bsn.	Examined by	1/1	This helio must be returned as soon as possible or NOT LATER THAN	Inspector		1/1
K.S.	Chief Inspector			Checked with Design and Diagram		
T.						
Plg.						
Dne Int.						

NOTE This diagram only indicates availability of a sewer and any sewerage service shown as existing in Sydney Water's records. The existence and position of Sydney Water's sewers, stormwater channels, pipes, mains and structures should be ascertained by inspection of maps available at any of Sydney Water's Customer Centres. Position of structures, boundaries, sewers and sewerage services shown hereon are approximately only.



NOTE This diagram only indicates availability of a sewer and any sewerage service shown as existing in Sydney Water's records. The existence and position of Sydney Water's sewers, stormwater channels, pipes, mains and structures should be ascertained by inspection of maps available at any of Sydney Water's Customer Centres. Position of structures, boundaries, sewers and sewerage services shown hereon are approximately only.